

CASE STUDIES

Of the 73 cases collected for this report, the researchers selected six cases for a deep-dive analysis. These selected cases offer noteworthy insights into the issues in prosecuting these cases. Three of these cases were filed under Article 28(2), two cases under Article 27(3) and in the last case, both provisions were invoked in the indictment. In addition to charges under the EIT Law, some of these cases also invoked Articles 14 and 15 of Law No. 1/1946 and the provisions of the Criminal Code. Four of these cases resulted in a final judgment of conviction/acquittal, one case was terminated through a “restorative justice mechanism” and the other remains stalled/pending with the police, reflective of the trends in the larger dataset.

A. Roy Suryo

In June 2022, Roy Suryo, a former Minister of Youth and Sports in the Indonesian government, was reported to the police for a post on Twitter. In this post, Roy Suryo reposted a meme (image with a caption) that had gone viral online. In the meme, a stupa/statue of the Borobudur temple (a famous Buddhist temple) had been modified to resemble former President Joko Widodo.¹¹² The caption on this image stated: “no wonder the ticket price is expensive, it appears that opung [grandfather] has built a statue of ‘I Gede Utang Jokowi’ [‘Jokowi has a lot of debt’] to add to the funds to build the new capital.”¹¹³ This meme was a response to the government’s announcement that it would increase the price of tickets to the Borobudur temple to IDR 750,000 (\$52) for domestic tourists.¹¹⁴

¹¹² See West Jakarta District Court Judgment [translation], Case No. 890/Pid.Sus/2022/PN.Jkt.Brt, pg. 56. (2022).

¹¹³ VOI, Roy Suryo Suspect of Blasphemy: As Former Minister, Should Be Wise in Social Media, Aug. 11, 2022 (provides a screenshot of Suryo’s Twitter post), *available at* <https://voi.id/en/bernas/200237>. Indonesia’s former President Widodo led an initiative to move the nation’s capital from Jakarta to a newly planned city, Nusantara, located in East Kalimantan. This decision is driven by the need to address Jakarta’s persistent challenges, including extreme congestion, pollution, and the alarming pace at which the city is sinking. However, numerous civil society groups have voiced strong opposition to the project, warning it will result in severe environmental damage and loss in biodiversity, accelerate deforestation, displace Indigenous communities, and incur substantial financial burdens on the population. See Edna Tarigan & Victoria Milko, Why Is Indonesia Moving its Capital from Jakarta to Borneo?, The Associated Press, Mar. 8, 2023, *available at* <https://apnews.com/article/indonesia-capital-kalimantan-climate-borneo-environment-eb0f8ad12e07bb105546296d88192834>; see also Bill Birtles, Deep in the Jungles of Borneo, Indonesia’s President Has Created a \$45 Billion Headache for his Successors, ABC News, Mar. 6, 2024, *available at* <https://www.abc.net.au/news/2024-03-07/indonesias-new-capital-in-the-jungles-of-borneo-nusantara/103438328>.

¹¹⁴ John Mcbeth, Tourist Fee Uproar Breaks the Calm of Borobudur, Asia Times, June 8, 2022, *available at* <https://asiatimes.com/2022/06/tourist-fee-uproar-breaks-the-calm-of-borobudur/>.

The plan to increase ticket prices was ultimately rolled back. See Southeast Asia Archaeology,

Separately, former President Widodo had announced in 2019 that the authorities would build a new capital city, a plan that was approved by Parliament in January 2022.¹¹⁵

Roy Suryo reposted the meme on June 10, 2022 with the following comment: “As it is the weekend, Tweets should be on lighter topics. Given the protests against the planned increase of the admission ticket to the Borobudur Temple (from 50 thousand) to 750 thousand that should (reasonably) be POSTPONED, netizen’s creativity abounds by altering an open stupa at Borobudur, FUNNY, he-3x AMBYAR [pitiful].” Suryo subsequently deleted this post on June 14, 2022 and issued a public apology on June 16, 2022.

However, on June 20, 2022, Suryo was reported to the Greater Jakarta Metropolitan Regional Police (Polda Metro Jaya) by a Buddhist businessman named Kurniawan Santoso¹¹⁶ and to the National Police Criminal Investigation Agency (“Bareskrim”) by Kevin Wu, an official of Dharmapala Nusantara, a Buddhist association.¹¹⁷ Suryo was ultimately named a suspect by the Polda Metro Jaya Regional Police on July 22, 2022, based on charges of hate speech under Article 28(2),¹¹⁸ blasphemy,¹¹⁹ and fake news (Article 15 of the Hoax

Government Rescinds Plan to Increase Borobudur Temple Entry Fee, June 17, 2022, *available at* <https://www.southeastasianarchaeology.com/2022/06/17/government-rescinds-plan-to-increase-borobudur-temple-entry-fee/#:~:text=Government%20rescinds%20plan%20to%20increase%20Borobudur%20Temple%20entry%20fee,-17%20June%202022&text=via%20Antara%2C%2014%20June%202022,has%20been%20completely%20walked%20back>.

¹¹⁵ Aisyah Llewellyn, Progress or Folly? Jokowi’s Vision for Indonesia’s New Capital, Aljazeera, Jan. 20, 2022, *available at* <https://www.aljazeera.com/economy/2022/1/20/progress-or-folly-jokowis-vision-for-indonesias-new-capital>.

¹¹⁶ Tria Sutrisna & Nursita Sari, Roy Suryo Dilaporkan ke Polda Metro Jaya Terkait Meme Stupa Candi Borobudur Mirip Jokowi (Roy Suryo Reported to Metro Jaya Regional Police Related to Borobudur Temple Stupa Resembling Jokowi Meme), Kompas, June 20, 2022, *available at* <https://megapolitan.kompas.com/read/2022/06/20/17121381/roy-suryo-dilaporkan-ke-polda-metro-jaya-terkait-meme-stupa-candi?page=all>.

¹¹⁷ Hasanudin Aco, Siapa Kevin Wu? Sosok yang Laporkan Roy Suryo ke Polisi hingga Jadi Tersangka (Who is Kevin Wu? The Person Who Reported Roy Suryo to the Police, Making Him a Suspect), Tribun News, July 22, 2022, *available at* <https://www.tribunnews.com/nasional/2022/07/22/siapa-kevin-wu-sosok-yang-laporkan-roy-suryo-ke-polisi-hingga-jadi-tersangka>; Rakhmad Hidayatulloh Permana, Roy Suryo Tersangka, Ini Jejak Kasus Meme Stupa yang Menjeratnya (Roy Suryo Suspected, This Is the Development of the Stupa Meme Case that Entangled Him), Detik, July 22, 2022, *available at* <https://news.detik.com/berita/d-6192947/roy-suryo-tersangka-ini-jejak-kasus-meme-stupa-yang-menjeratnya>.

¹¹⁸ EIT Law, Articles 28(2) and 45(2).

¹¹⁹ Old Criminal Code, Article 156a.

Provisions).¹²⁰ The case proceeded based on the complaint filed by Kurniawan Santoso, not Kevin Wu.

Suryo was detained by the police on August 5, 2022 and remained in detention throughout his trial on the orders of prosecutors and the judge.¹²¹ Suryo's trial started in October 2022. He was charged with violating Article 28(2) of the EIT Law, and in the alternative,¹²² knowingly and publicly expressing sentiments or committing an act constituting abuse or blasphemy against a religion under Article 156a of the Criminal Code, or disseminating news the accuracy of which is not certain, or news that has been exaggerated or is incomplete, under Article 15 (1) of Law No. 1 of 1946.

In December 2022, Suryo was found guilty under Article 28(2) of the EIT Law and sentenced to nine months of imprisonment.

The Panel of Judges relied on the fact that Suryo's post had attracted a negative reaction on social media, prompting Suryo to delete the post and issue a public apology.¹²³ They reasoned that several Buddhists, including the complainant and other witnesses, felt "disappointment and anger" upon reading his post.¹²⁴ In convicting Suryo, the Judges used the term "intergroup" to expand the group to not just Buddhists, but "many sympathizers/supporters of the President," who would feel offended by seeing the face of the President on the statue.

During trial, Suryo raised the defence that he had neither modified the image nor circulated it online but merely reposted it with the intention of bringing attention to the planned increase of the Borobudur Temple admission ticket price.¹²⁵ The judges rejected these arguments, stating that of all the Twitter handles that shared the meme, Suryo had the largest following (approximately

¹²⁰ See Rendika Ferri Kurniawan, Roy Suryo Resmi Ditahan, Ini Kasus yang Menjeratnya (Roy Suryo Officially Detained, This is the Case That Entangled Him), Kompas, Aug. 6, 2022, available at <https://www.kompas.com/tren/read/2022/08/06/063000465/roy-suryo-resmi-ditahan-ini-kasus-yang-menjeratnya?page=all>; District Court of West Jakarta, Case No. 890 / Pid.Sus /2022 / PN.Jkt.Brt., pgs. 57–58.

¹²¹ See West Jakarta District Court Judgment [translation], Case No. 890/Pid.Sus/2022/PN.Jkt.Brt, pg. 1 (2022).

¹²² As noted above (para. 42), in Indonesia, prosecutors have the discretion to charge the defendant with multiple offenses. However, the Panel of Judges will ultimately determine which, if any, of the alternative charges are made out.

¹²³ See West Jakarta District Court Judgment [translation], Case No. 890/Pid.Sus/2022/PN.Jkt.Brt, pgs. 59–60 (2022).

¹²⁴ *Id.* at pg. 65.

¹²⁵ *Id.* at pg. 24.

90,000 followers) and that “as a public figure, telematics expert, former member of the House of Representatives, and former Minister of Youth and Sports” he “ought to have been aware of the possibility that the Multiple Quote Tweet can be read/viewed by other people of different religions and backgrounds.”¹²⁶ The court did not address Suryo’s intention, failing to fulfil the Joint Decree’s requirements that a motive to create hatred or hostility must be proven, as discussed in the Legal Analysis section below.

Both Roy Suryo and the prosecution appealed this judgment before the Court of Appeal of the Special Capital Region of Jakarta. The prosecution asked for a more severe punishment. The Court upheld Suryo’s conviction and imposed an additional fine of IDR150,000,000.00 (approximately \$9500) and an additional sentence of 2 months’ imprisonment in case of inability to pay.¹²⁷ This decision was issued on February 10, 2023.¹²⁸ Roy Suryo then submitted a cassation application to the Supreme Court.¹²⁹ On May 2, 2023, the Supreme Court rejected the cassation appeal, thus giving Suryo’s conviction permanent legal force.

B. Ismail Marzuki

In February 2021, Ismail Marzuki, a journalist, human rights defender and the owner of an online media company named mudanews.com, was reported to the police for a video he uploaded on Facebook and YouTube.¹³⁰ In early 2021, Marzuki and a few others had held a protest in front of the North Sumatra Regional Police Headquarters to demand protection of a cultural heritage site, Benteng Putri Hijau. During the protest, Marzuki carried posters featuring a picture of Nawal Lubis, the wife of the Governor of North Sumatra (Edi

¹²⁶ *Id.* at pg. 61.

¹²⁷ Patrick Greenwalt, Country Update: Indonesia, Legal Impediments to Religious Freedom in Indonesia, US Commission on International Religious Freedom, pg. 2, *available at* <https://www.uscifr.gov/sites/default/files/2024-01/2024%20Indonesia%20Country%20Update.pdf>.

¹²⁸ *Id.*

¹²⁹ CNN Indonesia, Tolak Kasasi, MA Kuatkan Vonis 9 Bulan Penjara Roy Suryo (Cassation Rejected, Supreme Court Upholds Roy Suryo’s 9-Month Prison Sentence), May 4, 2023, *available at* <https://www.cnnindonesia.com/nasional/20230504125436-12-945176/tolak-kasasi-ma-kuatkan-vonis-9-bulan-penjara-roy-suryo>.

¹³⁰ See Medan District Court Decision [translation], Case No. 776/Pid.Sus/2022/PN Mdn, pg. 39 (2022); see also Mudanews, Pemimpin Redaksi Mudanews.com Sampaikan Nota Keberatan, Pekerjaan Wartawan Dilindungi UU Pers (Editor-in-Chief Mudanews.com Submits Memorandum of Objection, Journalists’ Work Protected by Press Law), Apr. 19, 2022, *available at* <https://desernews.com/pemimpin-redaksi-mudanews-com-sampaikan-nota-keberatan-pekerjaan-wartawan-dilindungi-uu-pers/>.

Rahmayadi), with the following slogans: “*Just because Bunda [Mother]*¹³¹ *NL [Nawal Lubis] is the wife of ‘ALL-POWERFUL PERSON’*”; “*Save Benteng Hijau from Bunda NL*” and “*Chief of North Sumatera Regional Police*¹³² *should immediately investigate Bunda NL regarding the damage to Benteng Putri Hijau.*”¹³³ These slogans referred to allegations that Nawal Lubis had obtained a Building Permit for an educational park, which would be a “learning place for the community” on how to improve agriculture and livestock activities, and the heritage site was at risk for damage from the construction of this park.¹³⁴ Marzuki recorded the protest in a two-minute video, where he also made the following remarks: “*The location of Benteng Putri Hijau is a protected area and is listed as a cultural heritage of North Sumatra located in Deliserdang. Just because Bunda NL is the wife of an all-powerful person, it does not mean Bunda NL should not be investigated regarding the buildings located within the location of Benteng Putri Hijau [which is classified as a cultural heritage] as stipulated in the Decree of the Regent of Deliserdang.*”¹³⁵

Marzuki uploaded the video of this protest on his personal Facebook account and the YouTube channel of mudanews.com. Subsequently, Marzuki was reported to the police by one of the owners of land in Sector 1 of Benteng Putri Hijau¹³⁶ and by Nawal Lubis herself (through her legal representative) for violating Article 27(3) of the EIT Law.¹³⁷

Marzuki wrote to the North Sumatra Police Chief requesting that he be provided the legal protection due to journalists under Law No. 40 of 1999 concerning the Press (stating that journalists should be protected by the law while “conducting

¹³¹ “TRANSLATOR: Bunda is another term for ‘mother’ but commonly used to informally address women as a substitute of using the formal salutation of Madame or Mrs.” See Medan District Court Decision [translation], Case No. 776/Pid.Sus/2022/PN Mdn, pg. 39 (2022).

¹³² “TRANSLATOR: abbreviated into KapoldaSU.” See *id.*

¹³³ *Id.* at pg. 40.

¹³⁴ *Id.* at pg. 9.

¹³⁵ *Id.* at pgs. 64–65.

¹³⁶ Police Report, No. LP/62/I/2021/Sumut/SPKT, Jan. 12, 2021; Sumutpos, Koordinator Aparat Minta Ismail Marzuki Dibebaskan (Coordinator Asks Ismail Marzuki to Be Freed), Mar. 11, 2023, *available at* Koordinator Aparat Minta Ismail Marzuki Dibebaskan | SumutPos (jawapos.com).

¹³⁷ Police Report, No. 294/II/2021/Sumut/SPKT, Feb. 9, 2021; Sumutpos, Koordinator Aparat Minta Ismail Marzuki Dibebaskan (Coordinator Asks Ismail Marzuki to Be Freed), Mar. 11, 2023, *available at* Koordinator Aparat Minta Ismail Marzuki Dibebaskan | SumutPos (jawapos.com).

the activities of [their] profession”).¹³⁸ The police did not consider his request. Marzuki was named a suspect on May 24, 2021, although he was not detained during investigation or trial.¹³⁹

The case proceeded based on the complaint of Nawal Lubis, not the one from the landowners. Marzuki’s trial started in April 2022 in Medan District Court,¹⁴⁰ and he faced charges of defaming Nawal Lubis under Article 27(3) of the EIT Law or alternatively, under Article 310(2) of the Criminal Code, which criminalizes libel.¹⁴¹ One year later, on April 27, 2023, he was found guilty of violating Article 27(3) and sentenced to six months imprisonment.¹⁴²

During the trial, a witness who participated in the protest along with Marzuki explained the context of the video: that Nawal Lubis had obtained a Building Permit for an educational park and the purpose of the protest was to save the heritage site from damage from the construction of this park.¹⁴³ The Panel of Judges acknowledged that Marzuki had attributed damage to the heritage site to Lubis for that reason¹⁴⁴ yet ultimately did not examine the truth of this claim and relied on testimony of select expert witnesses, as explained in the Legal Analysis section below.

The Court did not refer to the Joint Decree in its analysis. Indeed, its decision appeared to contravene the Joint Decree’s requirement that speech constituting opinions or concerning matters of public interest not be prosecuted under Article 27(3) — in his protest, Marzuki had merely called for Lubis to be investigated.

¹³⁸ Republic of Indonesia, National Law No. 40 of 1999 on the Press, Article 8 [hereinafter “Press Law”].

¹³⁹ See Medan District Court Decision [translation], Case No. 776/Pid.Sus/2022/PN Mdn, pg. 1 (2022).

¹⁴⁰ Tambah Komentar, Kasus Pengrusakan Situs Cagar Budaya Benteng Putri Hijau, Istri Edy Rahmayadi Pernah Laporkan Kader PDIP (The Case of Destruction of the Benteng Putri Hijau Cultural Heritage Site: Edy Rahmayadi’s Wife Once Reported a PDIP Cadre), Lensa Medan, Nov. 20, 2024, *available at* <https://www.lensamedan.co.id/2024/11/kasus-pengrusakan-situs-cagar-budaya.html#comment-form>.

¹⁴¹ See Medan District Court Decision [translation], Case No. 776/Pid.Sus/2022/PN Mdn, pg. 63 (2022).

¹⁴² *Id.* at pg. 69.

¹⁴³ *Id.* at pg. 45.

¹⁴⁴ *Id.* at pg. 66.

Ismail Marzuki and the prosecution appealed the judgment before the Medan Court of Appeals,¹⁴⁵ with the prosecution requesting enhanced punishment. On February 9, 2023, the Court of Appeals upheld the Medan district court's decision. In August 2023, Marzuki submitted a cassation application to the Supreme Court, which appears to have been dismissed in June 2024.

C. Thomas Madilis

Thomas Madilis, a resident of Negeri Amahai, a village in the Maluku province of Indonesia, was reported to the police for violating the EIT Law in June 2022. Madilis was reported for Facebook posts that criticised the local police for prioritizing eating contests (the local police had recently broken the Indonesian record for drinking the most nutmeg juice and eating congee) instead of other issues.¹⁴⁶

In one post he stated, "Ambon city of music is an icon of Maluku in a civilization of progress. The MURI [Indonesia World Records Museum] record should be for the birth of many Malukan singers with music quality that could compete internationally, rather than chasing MURI records for eating papeda (a type of congee) and nutmeg juice...." This statement referred to the music talent in Ambon, which was designated as a City of Music by UNESCO in 2019. In another post, Madilis commented "Gosh, what happened to TNI-Polri [the police] in Maluku? Why are they obsessed with Muri [records]?"

Madilis was reported to the Maluku regional police by some local youth associations on the basis of these Facebook posts. He was detained on June 25, 2022.¹⁴⁷ He was charged with violating Article 28(2) of the EIT Law as well

¹⁴⁵ Farid Achyadi Siregar, PT Medan Kuatkan Vonis Pria Penghina Istri Gubsu Edy (Medan High Court Upholds Sentence for Man Who Insulted North Sumatra Governor's Wife), Detik, July 17, 2023, *available at* <https://www.detik.com/sumut/hukum-dan-kriminal/d-6827700/pt-medan-kuatkan-vonis-pria-penghina-istri-gubsu-edy>.

¹⁴⁶ Winda Herman, Polisi tangkap pemuda Maluku Tengah karena hujat TNI-Polri di Facebook, berikut ini postingannya (Police Arrests Central Moluccan Youngster for Blasphemy Against TNI-Polri on Facebook, Here Is the Post), Ambon Antara News, June 28, 2022, *available at* <https://ambon.antaranews.com/berita/126721/polisi-tangkap-pemuda-maluku-tengah-karena-hujat-tni-polri-di-facebook-berikut-ini-postingannya>.

¹⁴⁷ Lukman Mukadar, Hujat Rekor MURI Minum Jus Pala, Pemuda Amahai Ditangkap Polisi & Terancam 10 Tahun Penjara (Blasphemous Against MURI's Record for Drinking Nutmeg Juice, Amahai Youngster Arrested by Police & Threatened with 10 Years in Prison), Tribun News, June 27, 2022, *available at* <https://ambon.tribunnews.com/2022/06/27/hujat-tnipolri-di-medsos-thomas-madilis-pemuda-amahai-ditangkap-terancam-10-tahun-penjara>; Lukman Mukadar, Hina Gubernur Maluku di Medsos, Thomas Madilis Jadi Tersangka (Humiliating the Governor of Maluku on Social Media, Thomas Madilis Becomes a Suspect), Tribun News, Mar. 14, 2023, *available at* <https://ambon.tribunnews.com/2023/03/14/hina-gubernur-maluku-di-medsos-thomas-madilis-jadi-tersangka>.

as both Hoax Provisions.¹⁴⁸ Madilis's detention was then suspended on June 28, 2022, after he posted an apology video and signed a letter promising not to repeat similar acts.¹⁴⁹ The Acting Head of Public Relations of the Maluku Regional Police stated that Thomas Madilis had been released through a restorative justice settlement.¹⁵⁰ Under the Joint Decree, this case should not have triggered criminal proceedings, let alone detention, because Madilis's statements did not call for, influence, motivate or incite people against each other and he had no evident motive to create hatred and/or hostility. It is relevant to note that Madilis was reported and named a suspect for violating the EIT Law again in 2023 for making statements critical of the Governor of Maluku and his wife.¹⁵¹

D. Dandhy Laksono

Dandhy Dwi Laksono is a journalist and filmmaker known for his documentaries about social issues, such as *Sexy Killers* (2019) about coal mines and *Asimetris* (2018) about the palm oil industry. On September 23, 2019, Dandhy wrote a Twitter thread about ongoing riots and unrest in Jayapura and Wamena, both cities in Papua, which were reportedly triggered by racist slurs made against Papuan students.¹⁵² According to Human Rights Watch, the riots resulted in 33

¹⁴⁸ Lukman Mukadar, Hujat Rekor MURI Minum Jus Pala, Pemuda Amahai Ditangkap Polisi & Terancam 10 Tahun Penjara (Blasphemous Against MURI's Record for Drinking Nutmeg Juice, Amahai Youngster Arrested by Police & Threatened with 10 Years in Prison), *Tribun News*, June 27, 2022, *available at* <https://ambon.tribunnews.com/2022/06/27/hujat-tnipolri-di-medsos-thomas-madilis-pemuda-amahai-ditangkap-terancam-10-tahun-penjara>.

¹⁴⁹ Ode Alfin Risanto, Sudah Minta Maaf, Pemuda Amahai yang Hujat Rekor Muri Minum Jus Pala Akhirnya Dibebaskan (Already Apologizing, Amahai Youngster Who Blasphemed Muri's Record for Drinking Nutmeg Juice Finally Freed), *Tribun News*, June 29, 2022, *available at* <https://ambon.tribunnews.com/2022/06/29/sudah-minta-maaf-pemuda-amahai-yang-hujat-rekor-muri-minum-jus-pala-akhirnya-dibebaskan>.

¹⁵⁰ *Id.*

¹⁵¹ Liputan Malteng, Polda Maluku Pastikan Saat Ini Thomas Madilis Berstatus Tersangka Kasus ITE (The Maluku Regional Police Confirm that Thomas Madilis Is Currently a Suspect in an ITE Case), Mar. 14, 2023, *available at* https://malteng.liputan.co.id/article_read/polda-maluku-pastikan-saat-ini-thomas-madilis-bers1678780412.

¹⁵² Arya Dipa, Filmmaker Dandhy Laksono Named 'Hate Speech' Suspect for Tweeting About Clashes in Papua, *The Jakarta Post*, Sept. 27, 2019, *available at* <https://www.thejakartapost.com/news/2019/09/27/filmmaker-dandhy-laksono-named-hate-speech-suspect-for-tweeting-about-clashes-in-papua.html>; For greater context on the clashes between Papuans and the Indonesian government, see Kate Lamb, West Papua: Thousands Take to Streets After Week of Violence, *The Guardian*, Aug. 26, 2019, *available at* <https://www.theguardian.com/world/2019/aug/26/west-papua-thousands-expected-at-fresh-protests-after-week-of-violence>; Human Rights Watch, Indonesia: Investigate Riot Deaths in

deaths and 8000 people being displaced.¹⁵³ Dandhy's Twitter post contained photos of two school students being shot, accompanied by the following text:¹⁵⁴

"JAYAPURA (photo 1)

Papuan students in exodus from campuses in Indonesia open a post at Uncen [University of Cendraswih]. Officers transport them from campus to Waena Expo [a cultural park]. Riot. Some were killed.

WAMENA (photo 2)

High school students protested the teacher's racist attitude. Faced by the military force. The city rioted. Many had gunshot wounds."

In the ensuing Twitter thread, Dandhy provided links to news articles and context for the events, explaining that in Wamena the "sequence [of events] is as follows: alleged racism - demonstration - gun shots - angry mob – arson," and in Jayapura "students were banned from setting up a post on the Cendrawasih University campus." He stated that news was being compiled, "but it's not easy to gather information because access to coverage for journalists is also not free." Dandhy also lamented that the events in Jayapura and Wamena "show that in Papua there seems to be only one way to solve all problems: violence."

Six days later, on September 29, 2019 at around 10:45pm, Dandhy was arrested at his residence by the Greater Jakarta Metropolitan Regional Police (Polda Metro Jaya).¹⁵⁵ Dandhy's arrest was based on an alleged violation of Article 28(2) of the EIT Law as well as the Hoax Provisions.¹⁵⁶ After being arrested, Dandhy spent about four hours under interrogation, with the police asking him questions regarding the Twitter posts, his motivations and intentions, and who told him to make the posts. At 4:00am, Dandhy was declared a suspect, and released. Under the Joint Decree, this case should have been terminated because Dandhy was only reporting facts, did not call for or incite any hatred or hostility, and had no evident intent to incite hatred or hostility. However, news

Papua, Oct. 7, 2019, *available at* <https://www.hrw.org/news/2019/10/07/indonesia-investigate-riot-deaths-papua>.

¹⁵³ Human Rights Watch, Indonesia: Investigate Riot Deaths in Papua, Oct. 7, 2019, *available at* <https://www.hrw.org/news/2019/10/07/indonesia-investigate-riot-deaths-papua>.

¹⁵⁴ Dandhy Laksono (@Dandhy_Laksono), Twitter (now X), Sept. 23, 2019, *available at* https://twitter.com/dandhy_laksono/status/1176019900050984961.

¹⁵⁵ Arya Dipa, Filmmaker Dandhy Laksono Named 'Hate Speech' Suspect for Tweeting About Clashes in Papua, The Jakarta Post, Sept. 27, 2019, *available at* <https://www.thejakartapost.com/news/2019/09/27/filmmaker-dandhy-laksono-named-hate-speech-suspect-for-tweeting-about-clashes-in-papua.html>.

¹⁵⁶ Detik, Ini Cuitan soal Papua yang Bikin Dandhy Laksono Jadi Tersangka (This is a Tweet About Papua that Makes Dandhy Laksono a Suspect), Sept. 27, 2023, *available at* Ini Cuitan soal Papua yang Bikin Dandhy Laksono Jadi Tersangka (detik.com).

articles from 2023 suggest that Dandhy continues to be a ‘suspect’ in this case.¹⁵⁷

E. Fatiah Maulidiyanti and Haris Azhar

In September 2021, prominent human rights defenders Fatiah Maulidiyanti and Haris Azhar were reported to the police by Luhut Binsar Pandjaitan, the Coordinating Minister for Maritime and Investment Affairs and a retired army general, for violating the EIT Law. This complaint concerned a YouTube video posted by Azhar to his YouTube channel titled: “THERE IS LORD LUHUT BEHIND THE ECONOMY MILITARY OPS RELATIONS IN INTAN JAYA!! CHIEF OF STATE INTELLIGENCE AGENCY AS WELL!!NgeHAMtam”.

The YouTube video featured a conversation between Azhar and Maulidiyanti in which the two discussed the findings of an investigative report published by a coalition of human rights organizations, entitled “The Political Economy of the Military Deployment in Papua” (the “Report”).¹⁵⁸ The Report described links between active and retired Indonesian military figures and entities involved in gold mining in Intan Jaya (in Central Papua province).¹⁵⁹ The Report stated that Pandjaitan had ties to a mining company working in Papua. Specifically, the Report alleged that the Australian company West Wits Mining gave Indonesia company Tobacom Del Mandiri (“TDM”) 30% of the shares it held in a mining project in Papua.¹⁶⁰ The Report states that TDM was itself a subsidiary of the Toba Sejahtera Group (“TS Group”), a corporate entity in which the Report alleged Pandjaitan held shares.¹⁶¹

¹⁵⁷ Ilham Safutra, Tiga Tahun setelah Tersangka, Kasus Dandhy Masih Terkatung-katung (Three Years After Suspect Status, Dandhy’s Case Still Adrift), *Jawapos*, Sept. 23, 2022, *available at* Tiga Tahun setelah Tersangka, Kasus Dandhy Masih Terkatung-katung - Jawa Pos.

¹⁵⁸ Haris Azhar, ADA LORD LUHUT DIBALIK RELASI EKONOMI-OPS MILITER INTAN JAYA!!JENDERALBIN JUGA ADA!! NgeHAMtam, YouTube, Aug. 20, 2021, *available at* <https://www.youtube.com/watch?v=1xMlnuOtBAs&t=13s>; Kontras et al., Ekonomi-Politik Penempatan Militer di Papua: Kasus Intan Jaya (The Political Economy of Military Deployment in Papua: The Case of Intan Jaya), Aug. 20, 2021, *available at* <https://jatam.org/id/lengkap/ekonomi-politik-penempatan-militer-di-papua-kasus-intan-jaya>.

¹⁵⁹ Kontras et al., Ekonomi-Politik Penempatan Militer di Papua: Kasus Intan Jaya (The Political Economy of Military Deployment in Papua: The Case of Intan Jaya), Aug. 20, 2021, *available at* <https://jatam.org/id/lengkap/ekonomi-politik-penempatan-militer-di-papua-kasus-intan-jaya>.

¹⁶⁰ *Id.* at pgs. 17–18 (“In Derewo River Gold Project, West Wits Mining also shared 30% of the shares with PT Tobacom Del Mandiri (TDM).”).

¹⁶¹ *Id.* at pg. 18 (“TDM itself is part of PT Toba Sejahtera Group.”).

The first of the two exchanges in the YouTube video mentioned in the complaint was as follows:¹⁶²

Fatihah Maulidiyanti

"Now, we also know that shares in Toba Sejahtera Group are also owned by one of our public officials"

Haris Azhar

"Who"

Fatihah Maulidiyanti

"his name is Luhut Binsar Panjaitan"

Haris Azhar

"LBP the lord. The Lord"

Fatihah Maulidiyanti

"Lord Luhut"

Haris Azhar

"Ok"

Fatihah Maulidiyanti

"So Luhut can be said as having a stake in the mining operations that are ongoing today in Papua"

In the second exchange, Azhar and Maulidiyanti discussed mining operations involving three companies, and Azhar satirically asked, "how can we take over these companies...", to which Maulidiyanti responded: "so we are criminal ourselves."¹⁶³

On August 26, 2021, six days after Azhar posted the YouTube video, Pandjaitan wrote to both Azhar and Maulidiyanti asking them to explain the reason they posted the video, make a public apology and promise not to reoffend. The letter threatened defamation charges under the Indonesian Criminal Code and the EIT Law.¹⁶⁴ Azhar and Maulidiyanti sent response letters through their legal counsel, with Azhar explaining the information in the YouTube video came from the Report. Despite this, Pandjaitan issued a second letter on September 2,

¹⁶² Indictment of Fatiah Maulidiyanty [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pg. 4.

¹⁶³ Indictment of Fatiah Maulidiyanty [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pg. 3; East Jakarta District Court Judgment [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pg. 8.

¹⁶⁴ International Federation for Human Rights, Indonesia: Judicial Harassment Against Fatiah Maulidiyanti and Haris Azhar, Mar. 31, 2023, *available at* <https://www.fidh.org/en/issues/human-rights-defenders/indonesia-judicial-harassment-againstfatia-maulidiyanti-and-haris>.

2021.¹⁶⁵ Both responded; Maulidiyanti stated that she was criticizing Pandjaitan in his official capacity as a minister, not as an individual.¹⁶⁶

On September 22, 2021, Pandjaitan filed a complaint for criminal defamation against Azhar and Maulidiyanti. In the complaint, he alleged violations of Article 27(3) of the EIT Law amounting to IDR 100 billion in damages, almost one hundred times the statutory fine. The Complaint referred to use of the phrase “Lord Luhut,” the statement “So Luhut can be said as having a stake in the mining operations that are ongoing today in Papua” and the remark, “so we are criminal ourselves.”¹⁶⁷

Roughly five months later, on March 18, 2022, Azhar and Maulidiyanti were named as suspects and summoned to the Greater Jakarta Metropolitan Regional Police (Polda Metro Jaya) for questioning.¹⁶⁸ On March 27, 2022, the Jakarta Prosecutor issued separate indictments for Azhar and Maulidiyanti.¹⁶⁹ They faced the following charges: Article 27(3) of the EIT Law or, in the alternative, defamation under Article 310 of the Criminal Code, or transmitting false news or information, or uncertain, exaggerated or incomplete information, under the Hoax Provisions.¹⁷⁰

The trial against Azhar and Maulidiyanti started in April 2023. Several national and international human rights NGOs, including the Clooney Foundation for Justice, submitted amicus briefs before the district court highlighting that the

¹⁶⁵ Amnesty International, Indonesia: Human Rights Defenders Accused of Defamation, *available at* <https://www.amnesty.org.uk/urgent-actions/human-rights-defenders-accused-defamation>.

¹⁶⁶ Front Line Defenders, Human Rights Defenders Fatiah Maulidiyanti and Haris Azhar Face Criminal Defamation Charges, Mar. 8, 2023, *available at* <https://www.frontlinedefenders.org/en/case/human-rights-defenders-fatia-maulidiyanti-and-haris-azhar-acquitted-defamation-charges-east#case-update-id-56549>.

¹⁶⁷ East Jakarta District Court Judgment [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pg. 7.

¹⁶⁸ Front Line Defenders, Human Rights Defenders Fatiah Maulidiyanti and Haris Azhar Face Criminal Defamation Charges, Mar. 8, 2023, *available at* <https://www.frontlinedefenders.org/en/case/human-rights-defenders-fatia-maulidiyanti-and-haris-azhar-acquitted-defamation-charges-east#case-update-id-56549>.

¹⁶⁹ Indictment of Fatiah Maulidiyanti [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pgs. 2–24; Indictment of Haris Azhar [translation], Case No. PDM:022/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pgs. 1–2 and 24.

¹⁷⁰ Indictment of Fatiah Maulidiyanti [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pg. 1; Indictment of Haris Azhar [translation], Case No. PDM:022/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pgs. 6–7.

speech in question was protected by the right to freedom of expression.¹⁷¹ In January 2024, the Court acquitted Azhar and Maulidiyanti of all charges.

The Panel of Judges held that the definition of “insult and/or defamation” in Article 27(3) “cannot be disassociated” from the guidelines laid down in the Joint Decree.¹⁷² Referring to the Joint Decree, the Judges found that “the conversation between Haris Azhar and Defendant Fatiah Maulidianty and Owi¹⁷³ does not qualify as insult and/or defamation as the statement made in the podcast video constituted a review, comment, analysis, opinion and assessment of the Rapid Assessment conducted by the Coalition of Civil Society.”¹⁷⁴ The Panel of Judges also found that the elements of Article 310 of the Criminal Code and the Hoax Provisions had not been fulfilled. Accordingly, Azhar and Maulidiyanti were acquitted of all charges. A detailed analysis of the judgment is provided in the Legal Analysis section below.

The prosecution filed an appeal against this verdict, which was rejected by the Supreme Court on September 24, 2024, thereby confirming their acquittal.

F. Daniel Frits Maurits Tangkilisan

Daniel Frits Maurits Tangkilisan is an environmental human rights defender and member of the Karimunjawa Fight Movement. The Karimunjawa Fight Movement aims to raise awareness of the harmful impact of intensive shrimp farming practices and advocates for the protection of the Karimunjawa National

¹⁷¹ Indoleft, National, International Groups Submit Amicus Curiae in Fatia-Haris Defamation Case, Jan. 5, 2024, *available at* <https://www.indoleft.org/news/2024-01-05/national-international-groups-submit-amicus-curiae-in-fatia-haris-defamation-case.html>; INCLO, Joint Amicus: Charges Relating to the Alleged Dissemination of ‘False Information’ Do not Withstand Scrutiny Under Constitutional and International Provisions, Dec. 18, 2023, *available at* <https://inclo.net/latest/statements/joint-amicus-charges-relating-to-the-alleged-dissemination-of-false-information-do-not-withstand-scrutiny-under-constitutional-and-international-provisions/>; ICJ, Indonesia: ICJ Asks Court to Ensure that Defamation and ‘False Information’ Laws not Be Used to Silence and Criminalize Human Rights Defenders, Nov. 30 2023, *available at* <https://www.icj.org/indonesia-icj-asks-court-to-ensure-that-defamation-and-false-information-laws-not-be-used-to-silence-and-criminalize-human-rights-defenders/>; Clooney Foundation for Justice, Indonesian Human Rights Defenders Prosecuted for Discussion of Investigative Report Should Be Acquitted of Defamation, May 12, 2023, *available at* <https://cfj.org/news/indonesian-human-rights-defenders-prosecuted-for-discussion-of-investigative-report-should-be-acquitted-of-defamation/>.

¹⁷² East Jakarta District Court Judgment [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pg. 5.

¹⁷³ Owi was another speaker in the video who joined Azhar and Maulidianty for a portion of the conversation.

¹⁷⁴ East Jakarta District Court Judgment [translation], Case No. PDM:021/JKT.TIM/EKU/03/2023, Mar. 27, 2023, pgs. 9–10.

Park, a declared marine reserve renowned for its coral reefs.¹⁷⁵ Frits was reported and arrested for violating the EIT Law based on comments he made in a Facebook post about the shrimp ponds in Karimunjawa.

On November 12, 2022, Frits posted a video of Cemara beach along with the following text on Facebook: “Cemara beach, 10 November, 2022, 14.24. Ten days after the beach has been cleaned by the Environmental Office of Jepara (reportedly with a one-billion-rupiah funding paid by the pond owners who were required to clean the area within 20 days) and visited by officials following an awareness raising event on education for pond owners. What do you think:....” and tagged several government officials.¹⁷⁶ Two users commented on his post, one lamenting that “the residents of Karimunjawa and Kemujan are not sufficiently united in their ejection of the breeding ponds, even though the environmental damage caused by the ponds is clear,” and the other commenting “Maybe the people are getting a lot of free shrimps.”

Frits posted two replies to these comments. In the first, he said: “Shrimp-brained community enjoying free shrimps while being eaten by the pond owners. Basically, people with shrimp brains are just like the shrimps being bred. Easy to feed, abundant in number & orderly ready to be eaten.” In the second, he said: “A community enjoying the ponds such as the free shrimps, mosque, musalla (prayer room), volleyball field that were built with money of the pond owners, is exactly like the shrimps being bred. Easy to feed, large in quantity and orderly ready to be eaten. They don’t realize that their source of income itself is being devoured. Just see, the consequences will manifest soon.” These comments were reported to the police by several residents of Karimunjawa as violating the EIT Law.

On December 7, 2023, Frits was arrested and interrogated, and ultimately released on December 8. On January 24, 2024, the Public Prosecutor indicted him under Article 28(2) of the EIT Law and Article 27(3) in the alternative and placed him in custody again. He remained in custody for the duration of his trial, which started on February 1, 2024. On April 4, 2024, he was found guilty under Article 28(2) and sentenced to seven months’ imprisonment and fined 5 million rupiah.

The Panel of Judges relied on the fact that 70 Karimunjawa residents filed complaints against Frits. As recounted in the judgment, the residents felt insulted because the words “shrimp brain community” meant that “the brains of Karimunjawa residents are equated with the brains of shrimp,” implying that they

¹⁷⁵ Front Line Defenders, Daniel Frits Maurits Tangkilisan, *available at* <https://www.frontlinedefenders.org/en/profile/daniel-frits-maurits-tangkilisan>.

¹⁷⁶ Daniel Frits Maurits Tangkilisan, Facebook (Nov. 10, 2022, 2:24 PM), *available at* <https://www.facebook.com/examplepost>.

were dim-witted. The residents also took umbrage with the comment that the mosque and musolla were built from the money of “pond owners,” even though they existed long before there were shrimp farmers in Karimunjawa.

The Judges found that Frits’s post and the subsequent complaint had caused hatred in the community: “[t]he group that supports the filing of complaint against the Defendant is considered as supporters of farmers while those who do not support the filing of complaint against the Defendant are considered supporters of tourism.” The Judges found that these rifts in the community proved that “the information disseminated by the Defendant has caused hatred for a group of people.” The Judges did not consider whether Frits intended to incite hatred, as required by the Joint Decree and international standards. The court instead held him liable for any controversies that arose around the filing of the complaint against him. A detailed analysis of the judgment is provided in the Legal Analysis section below.

An appeal was filed against this verdict. On May 21, 2024, the High Court overturned the district court decision and released Frits from all charges. The High Court held that Frits made the statement to defend the right to a healthy environment, which is enshrined in Indonesia’s Constitution.¹⁷⁷ The case was eventually brought before the Constitutional Court, which found, among other things, that the term victim in the EIT Law can apply only to individuals, excluding corporations, government agencies, public officials, and groups.¹⁷⁸

It is relevant to note that apart from Frits, three other environmental defenders from the #SaveKarimunjawa Movement were reported to the police in November 2023 for violations under Article 27(3) and Article 28(2) for a video opposing what they said was illegal intensive shrimp farm on Karimunjawa.¹⁷⁹ The investigation against them was terminated in May 2024 on ground that no criminality was discovered, shortly after Frits was acquitted by the High Court.¹⁸⁰

¹⁷⁷ Basten Gokkon, Indonesian Activist Freed in Hate Speech Case After Flagging Illegal Shrimp Farms, Mongabay, May 22, 2024, *available at* <https://news.mongabay.com/2024/05/daniel-frits-maurits-tangkilisan-indonesia-environmental-activist-exonerated-illegal-shrimp-farm-hate-speech-karimunjawa-marine-protected-area/>.

¹⁷⁸ Constitutional Court Decision No. 105/PUU-XXII/2024 at 459 (unofficial English translation).

¹⁷⁹ SAFEnet, Seruan Bersama Masyarakat Sipil: Hentikan Kriminalisasi Seluruh Aktivis #SaveKarimunjawa (Joint Civil Society Call: Stop the Criminalization of All #SaveKarimunjawa Activists), Jan. 19, 2024, *available at* <https://safenet.or.id/id/2024/01/seruan-bersama-masyarakat-sipil-hentikan-kriminalisasi-seluruh-aktivis-savekarimunjawa/>.

¹⁸⁰ Tempo, Polda Jateng Hentikan Penyelidikan terhadap Tiga Warga Karimunjawa Penolak Tambak Udang (Central Java Police Halt Investigation into Three Karimunjawa Residents Opposing Shrimp Farms), May 25, 2024, *available at* <https://www.tempo.co/hukum/polda-jateng-hentikan-penyelidikan-terhadap-tiga-warga-karimunjawa-penolak-tambak-udang-55560>.

LEGAL ANALYSIS



This section analyses Indonesia's implementation of Article 27(3) and Article 28(2) against international standards on defamation and hate speech. After laying down the respective international standards, this report examines gaps in the provisions and the extent to which these gaps were addressed by the Joint Decree. It then looks at how police, prosecutors and the courts have implemented the laws based on the cases in the dataset. Finally, this section examines the extent to which each gap is addressed by the revised EIT Law (that is currently in force) and the new Criminal Code.

This section also includes a brief analysis of Indonesia's fake news laws, based on international standards and the issues that arose in the cases in the dataset. It concludes with a brief spotlight on the fair trial concerns arising from the overreliance on 'expert opinions' by Indonesian courts in the cases analysed for this report.

A. Applicable Law

This analysis draws upon the International Covenant on Civil and Political Rights ("ICCPR"),¹⁸¹ to which Indonesia is party, and jurisprudence from the United Nations Human Rights Committee, which is tasked with monitoring implementation of the ICCPR. Additionally, this report draws on the following regional treaties and related guidelines and jurisprudence: the African Charter on Human and Peoples' Rights,¹⁸² the European Convention on Human Rights ("ECHR"),¹⁸³ and the American Convention on Human Rights.¹⁸⁴

B. Defamation

Article 19 of the ICCPR guarantees the "freedom to seek, receive and impart information and ideas of all kinds, regardless of frontiers, either orally, in writing or in print, in the form of art, or through any other media."¹⁸⁵ The right to freedom of speech is, however, subject to certain restrictions.

Article 19(3) of the ICCPR sets out a tripartite test to determine whether a restriction of speech is lawful: the restriction must be (i) provided by law and (ii)

¹⁸¹ ICCPR.

¹⁸² Banjul Charter.

¹⁸³ ECHR.

¹⁸⁴ ACHR.

¹⁸⁵ ICCPR, Article 19(2).

necessary (*iii*) for respect of the rights or reputations of others, national security or of public order (*ordre public*), or of public health or morals.¹⁸⁶ This list is exhaustive and cannot be used as a pretext for other objectives.¹⁸⁷ Similarly, according to the Human Rights Committee, any restriction on speech must: (*i*) be provided by law (the principle of legality); (*ii*) serve a legitimate objective (those enlisted under Article 19(3)); and (*iii*) be necessary to achieve and proportionate to that objective.¹⁸⁸ This test has also been adopted by Indonesia's Constitutional Court.¹⁸⁹

States often cite the protection of the “rights and reputation of others” as a key justification for limiting free speech in the context of criminal defamation laws.¹⁹⁰ It is worth noting that the term ‘rights’ in this context refers to human rights as captured in the ICCPR and international human rights law, and ‘others’ refers to both individuals and communities as natural persons, but not to institutions or public entities.¹⁹¹ Indonesia's Constitutional Court has held that government institutions or groups of people cannot be the victims of criminal defamation.¹⁹²

Defamation laws are, however, themselves subject to certain exclusions and exceptions, intended to balance both the right to freedom of expression and the rights and reputation of others.¹⁹³ These exceptions to defamation include:

- a. **Truth:** The Human Rights Committee has emphasized that truth is an important defense in the context of criminal laws that penalize defamation.¹⁹⁴ The UN Special Rapporteur on Freedom of Expression

¹⁸⁶ ICCPR, Article 19(3).

¹⁸⁷ UNHRC, General Comment No. 34 (2011), paras. 22 – 30.

¹⁸⁸ ICCPR at Articles 19(2)–(3); UNHRC, *Kim v. Republic of Korea*, U.N. Doc. CCPR/C/64/D/574/1994, Nov. 20, 1998, para. 12.2.

¹⁸⁹ Constitutional Court Decision No. 105 PUU-XXII/2024, at 442 (unofficial English translation).

¹⁹⁰ ECtHR, Guide on Article 10 of the European Convention on Human Rights: Freedom of Expression, Aug. 31, 2024, para. 123; UNHRC, *Adonis v. Phillipines* (Comm. No. 1815/2008), U.N. Doc. CCPR/C/103/D/1815/2008/Rev.1, Oct. 4 to Nov. 4 2011, para. 4.2; For Indonesian case law, see Constitutional Court Judgment [translation], Case No. 78/PUU-XXI/2023 para. 3.19.1.

¹⁹¹ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 28.

¹⁹² Constitutional Court Decision No. 105 PUU-XXII/2024, at 448 (unofficial English translation).

¹⁹³ Amal Clooney & David Neuberger, *Freedom of Speech in International Law*, Oxford University Press, pg. 198 (2024).

¹⁹⁴ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 47.

and Opinion has stated that “no one should be penalized for statements that are true.”¹⁹⁵

- b. **Good Faith:** With respect to speech relating to public figures, the Human Rights Committee has concluded that even false comments about public figures should not be penalized or “render[ed] unlawful” if they were “published in error but without malice.”¹⁹⁶ This protects speech that was made in good faith, i.e. without malice or the intention to defame.
- c. **Opinion:** The Committee has also found that criminalizing the expression of opinion is contrary to respect for freedom of expression.¹⁹⁷ The only exception to this is public denials or justification of genocide or similar international crimes.¹⁹⁸
- d. **Public Interest:** Certain types of speech are afforded heightened protection due to the recognition that they foster public accountability and protect democracy.¹⁹⁹ The Human Rights Committee has emphasized that “the value placed by the Covenant upon uninhibited expression is particularly high” in circumstances of public debate concerning public figures in the political domain and public institutions.²⁰⁰ The Human Rights Committee has affirmed this stance, and the ECtHR has stated that it requires “very strong reasons” to justify restrictions on political debate.²⁰¹

Under international law, any restriction on freedom of expression must also meet necessity and proportionality requirements. A law restricting speech will “violat[e] the test of necessity if the protection could be achieved in other ways that do not restrict freedom of expression.”²⁰² A restriction must be the “least

¹⁹⁵ UN Special Rapporteur F. La Rue, Report of the Special Rapporteur on the Promotion and Protection of the Right to Freedom of Expression (2012) UN Doc A/67/357, para. 50.

¹⁹⁶ UNHRC, General Comment 34, ¶ 47.

¹⁹⁷ Amal Clooney & David Neuberger, *Freedom of Speech in International Law*, Oxford University Press, chapter 2 (insulting speech) (2024).

¹⁹⁸ CERD Committee, General Recommendation No. 35, para. 14 (2013); see also ECtHR, *Pastörs v. Germany*, App. No. 55225/14, Oct. 3, 2019, paras. 36 - 37.

¹⁹⁹ See General Comment No. 34, para. 38; see also Office of the Special Rapporteur for Freedom of Expression Inter American Commission on Human Rights, *The Inter-American Legal Framework Regarding the Right to Freedom of Expression*, paras.32–56.

²⁰⁰ See General Comment No. 34, para. 38.

²⁰¹ ECtHR, *Alekchina v. Russia*, App. No. 38004/12, July 17, 2018, para. 212.

²⁰² UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 33.

intrusive instrument amongst those which might achieve their protective function.”²⁰³

The imposition of prison sentences for defamation does not satisfy the requirements of necessity and proportionality. The UN Human Rights Committee has explained that “imprisonment is never an appropriate penalty” for defamation offenses.²⁰⁴ It has urged “States parties [to] consider... decriminalization” of defamation, given the availability of a civil remedy for reputational harm.²⁰⁵ According to the Committee, “the application of the criminal law should only be countenanced in the most serious of [defamation] cases and imprisonment is never an appropriate penalty.”²⁰⁶

The UN Special Rapporteur on the promotion and protection of the right to freedom of opinion and expression (the “*UN Special Rapporteur on Freedom of Expression*”) and the Rapporteur’s counterparts in the Organization of American States (OAS) and Organization for Security and Cooperation in Europe (OSCE) have similarly stated that “criminal defamation is not a justifiable restriction on freedom of expression; all criminal defamation laws should be abolished and replaced, where necessary, with appropriate civil defamation laws.”

Regional human rights courts broadly agree. The European Court of Human Rights has often held that imprisonment is a disproportionate penalty for defamation claims,²⁰⁷ and the African Court on Human and Peoples’ Rights has noted that “[a]part from serious and very exceptional circumstances for example, incitement to international crimes,” speech “cannot be sanctioned” by custodial penalties.²⁰⁸ The Inter-American Court has likewise held that where

²⁰³ *Id.* at para. 34.

²⁰⁴ *Id.* at para. 47.

²⁰⁵ *Id.* at para. 47; see also UN General Assembly, Report of the Special Rapporteur on the Promotion and Protection of the Right to Freedom of Opinion and Expression, U.N. Doc. A/UN HRC/20/17, June 4, 2012, para. 84.

²⁰⁶ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 47.

²⁰⁷ ECtHR, *Belpietro v. Italy*, App. No. 43612/10, Sept. 24, 2013, paras. 52–53 and 113–114; see also ECtHR, *Raichinov v. Bulgaria*, App. No. 47579/99, Apr. 20, 2006, para. 50 (In finding a speech restriction disproportionate, one “factor on which the Court places particular reliance is that the applicant was not subjected to a civil or disciplinary sanction, but instead to a criminal one.”).

²⁰⁸ African Court of Human Rights, *Lohé Issa Konaté v. The Republic of Burkina Faso*, App. No. 004/2013, Dec. 5, 2014, para. 165.

speech concerns a public official, criminal penalties are not generally appropriate.²⁰⁹

Indonesia's Constitutional Court has taken the position that a person's reputation and honor is a protected legal interest, and the imposition of criminal sanction for violating that right does not necessarily contradict the defendant's constitutional rights.²¹⁰ Contemporary practice from other States, however, suggests that the prosecution of criminal defamation is increasingly seen as incompatible with international human rights law. In Europe, some states have repealed their criminal defamation laws, have stopped prosecuting offenses under them, or have at least eliminated the possibility of imprisonment.²¹¹ Similar developments have occurred in Africa with Malawi,²¹² Zimbabwe,²¹³ Kenya,²¹⁴ Lesotho,²¹⁵ and Liberia,²¹⁶ all of which eliminated their criminal defamation laws in the last decade. The same trend has also begun to take root in Asia and the Pacific region: New Zealand (1992), Sri Lanka (2002), Niue (2007), Timor-Leste (2009), Kyrgyzstan (2015), and the Maldives (2018) have all abolished criminal defamation.²¹⁷ In many of these countries, courts or

²⁰⁹ See Inter-American Court of Human Rights (IACtHR), *Álvarez Ramos v. Venezuela*, Series C No. 380, Aug. 30, 2019, para. 129.

²¹⁰ Constitutional Court Decision No. 105 PUU-XXII/2024, at 443 (unofficial English translation).

²¹¹ United Nations Educational, Scientific and Cultural Organization (UNESCO), *The 'Misuse' of the Judicial System to Attack Freedom of Expression: Trends, Challenges and Responses*, pg. 10 (Dec. 2022), *available at* <https://unesdoc.unesco.org/ark:/48223/pf0000383832>.

²¹² Southern Africa Litigation Centre, *Malawi High Court Declares Criminal Defamation Unconstitutional*, July 17, 2025, *available at* <https://www.southernafricalitigationcentre.org/malawi-high-court-declares-criminal-defamation-unconstitutional/>

²¹³ International Press Institute, *Zimbabwe Court Rules Criminal Defamation Unconstitutional*, Feb. 4, 2016, *available at* <http://legaldb.freemedia.at/2016/02/04/zimbabwe-court-rules-criminal-defamation-unconstitutional/>.

²¹⁴ High Court of Kenya at Nairobi, *Jacqueline Okuta & Another v. Attorney General & Others*, Petition No. 397 of 2016, Feb. 6, 2017, *available at* <http://kenyalaw.org/caselaw/cases/view/130781>.

²¹⁵ CPJ, *Lesotho Constitutional Court Declares Criminal Defamation Unconstitutional*, May 22, 2018, *available at* <https://cpj.org/2018/05/lesotho-constitutional-court-declares-criminal-def/>.

²¹⁶ Center for Media Studies & Peace Building, *President George Weah Signs New Press Freedom Act Which Repeals Libel, IFEX*, Mar. 5, 2019, *available at* <https://ifex.org/president-george-weah-signs-new-press-freedom-act-which-repeals-libel/>.

²¹⁷ UNESCO, *The 'Misuse' of the Judicial System to Attack Freedom of Expression: Trends, Challenges and Responses*, pg. 9 (Dec. 2022), *available at* <https://unesdoc.unesco.org/ark:/48223/pf0000383832>.

lawmakers have expressly declared criminal penalties for defamation to be disproportionate or to otherwise contravene basic constitutional rights to free speech and freedom of the press.²¹⁸

Indonesia has not only retained criminal defamation on its books, but it has also failed to comply with other requirements of international law. The law is not defined clearly and precisely per the principle of legality; value judgments are criminalized; there is no unqualified defence of truth; statements made in good faith about public figures and speech that is in public interest can be prosecuted. This section deals with each of these issues in turn.

Principle of Legality

In order to comply with the principle of legality, legislation restricting speech must be “formulated with sufficient precision to enable an individual to regulate his or her conduct accordingly... [and] may not confer unfettered discretion for the restriction of freedom of expression on those charged with its execution.”²¹⁹ The UN Special Rapporteur on Freedom of Expression has further noted that any restriction on speech “must be provided by laws that are precise, public and transparent; it must avoid providing authorities with unbounded discretion.”²²⁰ If a law “provide[s] individuals with limited guidance about the lines dividing lawful from unlawful behavior,” then it likely does not conform to the principle of legality.²²¹

Article 27(3) of the EIT Law fails the legality requirement because key terms in the law are undefined, vague and overbroad. The provision criminalizes “distribution” and “transmission” of “insults” without providing clarity on these terms. The elucidation to Article 27(3) defines “distributing,” “transmitting” and

²¹⁸ See, e.g. High Court of Kenya at Nairobi, *Jacqueline Okuta & Another v. Attorney General & Others*, Petition No. 397 of 2016, Feb. 6, 2017, pg. 13 (“[T]he harmful and undesirable consequences of criminalizing defamation, viz. the chilling possibilities of arrest, detention and two years imprisonment, are manifestly excessive in their effect and unjustifiable in a modern democratic society.”), *available at* <http://kenyalaw.org/caselaw/cases/view/13078>; *Maldives Independent, Anti-Defamation Law Repealed*, Nov. 14, 2018 (Noting that, during the debate on repealing the Maldives’ criminal defamation law, “most lawmakers said it contravened the constitutional rights to free speech and press freedom.”), *available at* <https://maldivesindependent.com/politics/anti-defamation-law-repealed-142649>.

²¹⁹ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 25.

²²⁰ UN General Assembly, Report of the Special Rapporteur on the Promotion and Protection of Freedom of Expression, U.N. Doc. A/74/486, Oct. 9, 2019, para. 6(a).

²²¹ UN General Assembly, Report of the Special Rapporteur on the Promotion and Protection of Freedom of Expression, U.N. Doc. A/71/373, Sept. 6, 2016, para. 13.

“making accessible,” though these explanations are very broad.²²² The inclusion of the term ‘insults’ alongside defamation suggests that Article 27(3) sweeps more broadly than classical defamation would, but it is unclear what is meant to be covered.

The Joint Decree did not provide much additional clarity. As to ‘distribution,’ ‘transmission’ and ‘making accessible,’ it simply states: “The focus ... [is] on the action of the accused who knowingly and with intent distributes/transmits/makes accessible information whose content is an affront to the dignity of a person.”²²³ It also reiterated the 2008 Constitutional Court ruling that held that the offence of defamation in Article 27(3) “refers to and cannot be separated from the provisions of Article 310 and Article 311 of the Criminal Code.”²²⁴ Article 310 of the Criminal Code, which speaks of “harm[ing] someone’s honor or reputation by charging him with a certain fact,” is also vague.

Our dataset shows the perils of such vagueness: despite the issuance of the Joint Decree, Article 27(3) was applied against a wide range of speech.²²⁵ In at least 16 defamation cases analysed for this report, the police had included charges under other provisions in the Criminal Code (including Article 310 and 311) in addition to Article 27(3). This suggests significant uncertainty regarding what is exactly covered by that Article, as opposed to other provisions.

In 2023, Fatiah Maulidiyanti and Haris Azhar challenged Article 27(3) of the EIT Law, Article 310 of the Criminal Code and Articles 14 and 15 of Law No. 1/1946 before the Indonesian Constitutional Court on the ground that they violate the right to legal certainty and freedom to exercise their fundamental rights.²²⁶ They argued that these laws open up the possibility that any person could be criminalized for exercising their opinion in public, despite it being a constitutionally protected right.²²⁷ As discussed above, Maulidiyanti and Azhar faced charges for a YouTube video where they discussed mining operations in Papua.

²²² Dian Rositawati et al., *Protecting Expression: Criminal and Human Rights Law Analysis of Court Judgments in Indonesia*, LeIP, Stanford Center for Human Rights and International Justice, & Norwegian Embassy Jakarta, June 2023, at 51 [hereinafter “Rositawati”] (defining the terms “distributing”, “transmitting” and “making accessible,” of Article 27(3)).

²²³ Joint Decree, Article 27 (3), para. g.

²²⁴ Joint Decree, Article 27 (3), para. a.

²²⁵ See *supra* Section Joint Decree and its Implementation, paras. 34–35; *infra* Section Truth, paras. 33–35.

²²⁶ Constitutional Court Judgment [translation], Case No. 78/PUU-XXI/2023, para. 3.8.2.

²²⁷ *Id.* at para. 3.8.3.

With respect to Article 310(1) of the Criminal Code, the Petitioners argued that it “is an extremely subjective and disproportionate clause as there exists no clear boundaries by which to objectively determine the degree of the affront against honor or reputation that is punishable by law.”²²⁸ They further argued that the issuance of the Joint Decree itself proves that Article 27(3) is unclear and contrary to the guarantee of legal certainty.²²⁹ It was argued that the element of “attacking honor” is not clearly defined, and that “honor and reputation/good name” are applied relatively and subjectively, giving the example that calling someone “Lord” may be insulting to some, and not to others.²³⁰

The Court declared Article 310(1) to be “conditionally unconstitutional” and held that the Petitioner’s arguments on the unconstitutionality of Article 310(1) had “legal grounds in part.”²³¹ The Court did not rule on the constitutionality of Article 27(3) on the ground that it had already been modified by the amendment to the EIT Law in 2023; therefore, the petition had lost its object and would not be considered further.²³²

Importantly, the Court struck down Articles 14 and 15 of Law No. 1/1946 holding that the provisions were “broad and unclear and thus can be interpreted in an unlimited and diverse manner.”²³³ These findings are relevant for not just the provisions on fake news, but for laws that criminalize freedom of expression online in general. This judgment is discussed in further detail in the section on ‘Fake news’ below.

The revised EIT Law and the new Criminal Code have, however, retained an overbroad definition of defamation, similar/identical to Article 310 of the old Criminal Code. Both laws define defamation as “attacking the honor or good name/reputation” of a person by making an accusation. The commentaries to the provisions do not provide much additional clarity. The commentary to Article 27A of the revised EIT Law merely states that “attacking honor or good name is an act that degrades or damages the good name or dignity” of a person “to their detriment.” Similarly, the commentary to Article 433 states that the defamatory

²²⁸ *Id.* at para. 3.8.6.

²²⁹ *Id.* at paras. 108–109; The 1945 Constitution of Indonesia, Article 28D(1) (Article 28D(1) guarantees legal certainty and states that “[e]very person shall have the right of recognition, guarantees, protection and certainty before a just law, and of equal treatment before the law.”).

²³⁰ Constitutional Court Judgment [translation], Case No. 78/PUU-XXI/2023, paras. 101–102.

²³¹ To clarify its stance on the provision, the Court referenced Article 433(1) (the defamation provision) of the new Criminal Code, and said that Article 310(1) also applied to defamation by “verbal means” as specified by Article 433(1). *Id.* at paras. 3.19.2–3.20.

²³² *Id.* at para. 3.17.1.

²³³ *Id.* at para. 3.18.6.

speech should cause a “loss to th[e] person.” As will be elaborated below, these explanations do not specify whether value judgments, or truthful speech, are covered by these definitions.

Opinions & Insulting Speech

The Human Rights Committee has said that defamation laws “should not be applied with regard to those forms of expression that are not, of their nature, subject to verification.”²³⁴ It has also held that the mere fact that “forms of expression are considered to be insulting ... is not sufficient to justify the imposition of penalties.”²³⁵

The European Court of Human Rights has likewise stressed the difference “between statements of fact and value judgments. While the existence of facts can be demonstrated, the truth of value judgments is not susceptible of proof. The requirement to prove the truth of a value judgment is impossible to fulfil and infringes freedom of opinion itself.”²³⁶ By their nature, value judgments may be insulting. In 2005, for example, the European Court heard a case where the applicant used the phrase “No shame and no scruples!” to publicly describe the Governor of Ulyanovsk Region (Oblast) in Russia.²³⁷ Despite the phrase’s unpleasant connotations, the European Court held that the contested statement was “a quintessential example of a value judgment that represented the applicant’s subjective appraisal of the moral dimension” of the Governor’s behavior.²³⁸ The European Court has held that national legislation that fails to draw this distinction between value judgments and statements of fact thus reflects an “indiscriminate approach to the assessment of speech” that is “*per se* incompatible with freedom of opinion.”²³⁹

The distinction between facts and value judgments is all the more important when assessing statements made about public figures. As the Organization of American States’ Special Rapporteur for Freedom of Expression has made clear: “[p]olitical criticism often involves value judgments.”²⁴⁰ The European Court has reasoned that an individual “knowingly lays himself open to close

²³⁴ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 47.

²³⁵ *Id.* at paras. 11 and 38.

²³⁶ ECtHR, *Fedchenko v. Russia* (No. 5), App. No. 17229/13, Oct. 2, 2018, para. 44.

²³⁷ ECtHR, *Grinberg v. Russia*, App. No. 23472/03, July 21, 2005, para. 9.

²³⁸ *Id.* at para. 31.

²³⁹ ECtHR, *Gorelishvili v. Georgia*, App. No. 12979/04, June 5, 2007, para. 38.

²⁴⁰ OAS, Background and Interpretation of the Declaration of Principles, para. 50, *available at* <https://www.oas.org/en/iachr/expression/showarticle.asp?artID=132>.

scrutiny” by assuming a public position, even for a temporary time.²⁴¹ In this public position, “he should have a higher degree of tolerance for criticism.”²⁴²

On its face, Article 27(3) does not exclude opinions or value judgments, or insults.

The Joint Decree seemed to acknowledge this issue, specifying that content “derived from an assessment, opinion, evaluation” and “insults categorized as mockery, ridicule, and/or inappropriate words” should not be criminalized under Article 27(3).

Our data shows, however, that the Joint Decree was not complied with: over 60 percent of the Article 27(3) cases in the dataset, which were either initiated or pursued after the introduction of the Joint Decree, involved opinions or insulting speech that could be classified as mockery, ridicule or inappropriate words.

For example, on September 20, 2022, lawyer Alvin Lim was reported to the police for calling the Attorney General’s office a “mafia den” in a video on YouTube.²⁴³ One year later, in August 2023, he was determined to be a suspect.²⁴⁴ In addition to Article 27(3), Lim was charged under Article 28(2), Articles 14 and 15 of Law No. 1/1946 and Articles 310 and 311 of the Criminal Code.²⁴⁵ The case still appears to be pending.

In another case dating to June 2022, a former police official put a status on WhatsApp calling another police official (the complainant) a “robber.”²⁴⁶ The case went to trial and the defendant was convicted and sentenced to two months

²⁴¹ See ECtHR, *Grinberg v. Russia*, App. No. 23472/03, July 21, 2005, para. 25; see also ECtHR, *Gorelishvili v. Georgia*, App. No. 12979/04, June 5, 2007, para. 35; ECtHR, *Fedchenko v. Russia* (No. 5), App. No. 17229/13, Oct. 2, 2018, para. 49.

²⁴² ECtHR, *Karman v. Russia*, App. No. 29372/02, Dec. 14, 2006, para. 35.

²⁴³ Diva Lufiana Putri & Rizal Setyo Nugroho, Alvin Lim dan Kasusnya, Pengacara yang Jadi Tersangka Ujaran Kebencian (Alvin Lim and His Case, Lawyer Suspected of Hate Speech), *Kompas*, Sept. 2, 2023, *available at* <https://www.kompas.com/tren/read/2023/09/02/120000765/alvin-lim-dan-kasusnya-pengacara-yang-jadi-tersangka-ujaran-kebencian?page=all#:~:text=Alvin%20Lim%20merupakan%20seorang%20advokat,hukum%20waris%2C%20dan%20hukum%20pajak>.

²⁴⁴ *Id.*

²⁴⁵ Fransiskus Adryanto Pratama, Polri Tetapkan Alvin Lim Jadi Tersangka Pencemaran Nama Baik (National Police Names Alvin Lim as Defamation Suspect), *Tirto*, Aug. 20, 2023, *available at* <https://tirto.id/polri-tetapkan-alvin-lim-jadi-tersangka-pencemaran-nama-baik-gPw9>.

²⁴⁶ Manado High Court Decision [translation], Case No. 66/PID/2023/PT MND, pgs. 1–2.

imprisonment,²⁴⁷ which was increased to six months by the High Court on appeal.²⁴⁸ The High Court relied on the testimony of a ‘linguistic expert,’ who held that the defendant’s speech “contains the element of defamation” and found that there was no error in the District Court judgment.²⁴⁹

By contrast, the European Court considered an article in which a journalist had referred to local officials as “masters of thievery.” In that case, the Court held that the statement was a value judgment; the Court stressed that the defendant “expressed his disapproval of the actions of local officials, choosing the form of a rhetorical question. . . . The Court does not consider that the applicant overstepped the margins of the certain degree of exaggeration or even provocation allowed by journalistic freedom.”²⁵⁰

Indonesian courts do not appear to make the distinction between value judgments and alleged facts, and instead rely on experts’ interpretation of the statement to arrive at a finding of defamation, as in the case above. In another case, the court similarly relied on the analysis of a linguistic expert to determine whether the defendant’s statements during a WhatsApp argument were defamatory—and convicted the defendant on that basis.²⁵¹ In the case of Ismail Marzuki, who raised slogans against Nawal Lubis, the wife of the Governor of North Sumatra calling her “the wife of ‘ALL-POWERFUL PERSON,’” the court relied on an expert who stated that the Governor was not an “an all-powerful person” and so it was not appropriate to call him such because “the powers he holds are also regulated by law and have limitations.”²⁵²

This example reflects another pattern. A study on court judgments in Indonesia entitled “Protecting Expression” explains that Indonesian courts typically examine speech literally— i.e. they only look at the grammatical meaning of the speech, and do not consider its context.²⁵³ Even in the case of Haris Azhar and Fatia Maulidiyanti, the police and prosecutors took the case forward on the basis of Minister Pandjaitan’s allegation that they had insulted him by using the term

²⁴⁷ Kotamobagu District Court Decision, Case No. 366/Pid.Sus/2022/PN Ktg, May 10, 2023, available at <https://103.16.79.91/direktori/putusan/zaedef8dc4ccb196a600303635323438.html>.

²⁴⁸ Manado High Court Decision [translation], Case No. 66/PID/2023/PT MND, pg. 7.

²⁴⁹ *Id.* at pg. 2.

²⁵⁰ Fedchenko v. Russia (No. 5), European Court of Human Rights, App. No. 17229/13, October 2, 2018, para 58.

²⁵¹ District Court of Tanjungpinang, Case No. 196/Pid.Sus/2023/PN Tpg.

²⁵² District Court of Medan Judgment [translation], Case No. 776/Pid.Sus/2022/PN Mdn, pgs. 18–19.

²⁵³ See Rositawati, at 80, 131–132, 134, 136–137, 160–161, and 225–226.

“Lord Luhut” and commenting “so we are criminal ourselves,” without looking at the context of the speech. The case stretched over three years, requiring significant resources and leaving criminal charges hanging over the heads of two prominent human rights defenders. While the court eventually found that “Lord Luhut” was not an insult, but merely a reference to the status of a person and that the remark about being criminals was “a form of humor,”²⁵⁴ the decision was an outlier.

Concerningly, neither the revised EIT Law nor the new Criminal Code distinguish between facts and opinions, both allow for the criminalization of value judgments. Article 27A of the EIT Law eliminates Article 27(3)’s language regarding “contents of insults” and replaces it with the requirement of making an allegation/accusation (ostensibly some sort of defamatory remark).

Truth

Under international law, “penal defamation laws[] should include such defences as the defence of truth.”²⁵⁵ The Human Rights Committee has found a violation of Article 19 when a radio commentator was convicted under a defamation law that permitted the proof of truth only under restricted conditions.²⁵⁶ In a case where an Angolan journalist was charged with defamation for alleging corruption against the President, the Committee emphasized the importance of the defense of truth, finding an Article 19 violation because the “proposed truth defence against the libel charge was ruled out by the Courts.”²⁵⁷

²⁵⁴ District Court of East Jakarta Judgment [translation], Case No. 203/Pid.Sus/2023/PN.JktTim, pg. 231.

²⁵⁵ See UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 47; see also Amal Clooney & David Neuberger, *Freedom of Speech in International Law*, Oxford University Press, pgs. 114–116 (2024).

²⁵⁶ UNHRC, *Adonis v. Phillipines*, U.N. Doc. CCPR/C/103/D/1815/2008/Rev.1, Oct. 4 to Nov. 4, 2011, para. 3.5 (The law in consideration in this case was “[A]rticle 354 of the Revised Penal Code, according to which ‘every defamatory imputation is presumed to be malicious, even if true, if no good intention and justifiable motive for making it is shown, except in the following cases ... 2. A fair and true report, made in good faith, without any comments or remarks of any judicial, legislative or other official proceedings which are not of confidential nature, or of any statement, report or speech delivered in said proceedings, or of any other act performed by public officers in the exercise of their functions.’”).

²⁵⁷ UNHRC, *Marques de Morais v. Angola*, U.N. Doc. CCPR/C/83/D/1128/2002, Mar. 29, 2005, para. 6.8.

The Committee expressed “concern” that South Korea’s defamation law allowed for criminal prosecution for true statements, “except when such statements are made solely for the public interest,”²⁵⁸ similar to the law in Indonesia.

In contravention of international standards, Article 27(3) of the EIT Law did not include a defense of truth. Even the reference to the defamation provisions of the Criminal Code does not cure this lacuna—as per the existing Code, proving the truth of the accusation is only permissible in two circumstances: 1) to determine whether the defendant acted in public interest or self-defense, or 2) if an official is accused of something while carrying out his duties.²⁵⁹ Further, the defence of truth is not only extremely limited, but failure to prove truth can lead to the aggravated charge of calumny.²⁶⁰

While the Joint Decree specified that Article 27(3) is not meant to criminalize content derived from “facts,” the police seem to have ignored this.²⁶¹

In one case, a journalist, Tinus Restanto Eka, was reported to the police for publishing a news report stating that a government official, Firman Rusli, was being sued in a land dispute.²⁶² The article was titled “Firman Rusli Sued for Compensation of IDR8 Billion” – a factual report stating that Rusli was one of the defendants in a civil lawsuit relating to a land dispute, which also included a screenshot of the court records.²⁶³ Rusli reported Tinus to the police one year later, and the police summoned Tinus to the police station for investigation.²⁶⁴

²⁵⁸ UNHRC, Concluding Observations on the Fourth Periodic Report the Republic of Korea, U.N. Doc. CCPR/C/KOR?CO/4, Dec. 3, 2015, para. 46; Amal Clooney & David Neuberger, *supra*, pg. 115.

²⁵⁹ Old Criminal Code, Article 312.

²⁶⁰ If the defendant raises a defense of truth in these cases but fails to substantiate the claim and it is determined that the allegation is contrary to what they know, they may face conviction for the more severe offense of calumny, which carries a maximum sentence of four years. In contrast, standard slander and libel offenses are punishable by maximum sentences of nine months and one year and four months, respectively. See *id.* at Articles 311–312.

²⁶¹ An analysis of the truth/falsity of the statements in cases was not done for this report.

²⁶² Pers Lampung, Catatan Akhir Tahun 2022 AJI Bandarlampung: Belenggu Kebebasan Pers dan Demokrasi (2022 Year-End Report of AJI Bandar Lampung: Shackles on Press Freedom and Democracy), Teraslampung, Dec. 29, 2022, *available at* <https://www.teraslampung.com/catatan-akhir-tahun-2022-aji-bandarlampung-belenggu-kebebasan-pers-dan-demokrasi/>.

²⁶³ Tinus Restanto Eka, Firman Rusli Digugat Ganti Rugi Rp8 Miliar (Firman Rusli Sued for Rp8 Billion in Damages), Kirka.co, Aug. 21, 2021, *available at* <https://kirka.co/firman-rusli-digugat-ganti-rugi-rp8-miliar/>.

²⁶⁴ Interview with Tinus Restanto Eka, Nov. 29, 2023.

As of November 2023, the complaint remained pending and neither Tinus nor his lawyer received a notification on the development of the investigation.²⁶⁵

In another case, a complaint under Article 27(3) was filed against an employee of a company, Septia Dwi Pertiwi, for Twitter posts that exposed alleged illegal and abusive working conditions at the company, including unpaid overtime, salary cuts, wrongful dismissals, and withheld benefits. Many of these posts included screenshots and facts supporting her claim.²⁶⁶ The complaint was filed by the owner of the company, although he was not named in the Twitter posts.²⁶⁷ Despite the fact that the defendant had apparent evidence for her claims—including testimony from former employees, work logs, WhatsApp chats, and verified news reports²⁶⁸—she was declared a suspect and detained for over 5 months pending trial. Eventually, the Court found that the claims in each of her Twitter posts were true and she was acquitted.²⁶⁹ The Court also relied on the Joint Decree in coming to the conclusion that facts and opinions are excluded from Article 27(3).²⁷⁰ Although acquitted, she endured a six-month investigation, five months of pre-trial detention, and the ongoing threat of imprisonment for simply speaking out against workplace abuses.²⁷¹

Even in Fatia and Haris' case the Panel of Judges considered the truth of the statements made in the video, holding that the claim that Pandjaitan had a stake in the mining operations in Papua "is a claim that cannot be refuted as it is established that PT Tobacom Del Mandiri as the subsidiary of PT Toba Sejahtera whose shares are 99% owned by witness Luhut Binsar Pandjaitan has business ties with West Wits Mining involving mining operations in Tanah Papua."

Strikingly, neither Article 27A of the revised EIT Law nor the defamation provisions in the new Criminal Code incorporate a defense of truth. The latter reproduces the approach of the old Criminal Code, where truth may only be proved in certain cases and failure to prove truth could lead to the higher charge of calumny.

²⁶⁵ *Id.*

²⁶⁶ Central Jakarta District Court, Case No. Number 589/Pid.Sus/2024/PN, pgs. 2, 5–7.

²⁶⁷ *Id.* at pg. 54.

²⁶⁸ *Id.* at pgs. 53–56.

²⁶⁹ *Id.* at pgs. 68–72.

²⁷⁰ *Id.* at pgs. 68–72.

²⁷¹ *Id.* at pgs. 1, 3, 83.

Intention to Defame

International standards also protect statements made in good faith, even if not true, at least when the statements relate to public figures. The Human Rights Committee has stated that “[a]t least with regard to comments about public figures, consideration should be given to avoiding penalizing or otherwise rendering unlawful untrue statements that have been published in error *but without malice*.”²⁷² Similarly, the European Court of Human Rights has emphasized that “[l]ibel defendants ... may thus be relieved of the obligation to prove the truth of the facts alleged in their publications and avoid conviction by simply showing that they have acted *fairly and responsibly*.”²⁷³ The Inter-American Court of Human Rights has also held that courts must consider “the conduct of the individual who expressed the opinion, *his actual malice*, the characteristics of the unfair damage caused, and other information which shows the absolute necessity to resort to criminal proceedings as an exception.”²⁷⁴

National courts likewise require satisfaction of a stringent mental element in cases concerning public figures. For instance, in the national courts of India, the Philippines, South Korea, Hungary, Argentina, Uruguay, and the United States, claims of defamation of public figures require a showing of “actual malice.”²⁷⁵ Under the “actual malice” standard, the speaker or author must demonstrably have acted with specific harmful intent; that is, they either knew they were making a false statement, or made the statement with reckless disregard of its truth or falsity. This higher standard for claims involving public figures is crucial for uninhibited debate about matters of public concern.

In contrast, the *mens rea* requirement in Article 27(3) is “intentionally and without right” implying that the defendant has to be merely aware of his actions, and that there is no requirement to have an intention to defame (let alone the higher standard of *actual malice* required by international law for statements relating to

²⁷² UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 47 (emphasis added).

²⁷³ See ECtHR, *Kasabova v. Bulgaria*, App. No. 22385/03, July 19, 2011, para. 61 (emphasis added); see also ECtHR, *Radio France and Others v. France*, App. No. 53984/00, Mar. 30, 2004, para. 24; ECtHR, *Standard Verlags GmbH and Krawagna-Pfeifer v. Austria*, App. No. 19710/02, Feb. 2, 2006, paras. 16, 30, and 57.

²⁷⁴ IACtHR, *Tristán Donoso v. Panama*, Series C No. 193, Jan. 27, 2009, para. 120 (emphasis added).

²⁷⁵ See Amal Clooney & David Neuberger, *supra*, pg. 76; see, e.g. *Guinguing v. Court of Appeals*, 508 Phil. 193, 221–223 (Sept. 30, 2005) [Per J. Tinga, Second Division] (Reaffirming the “acceptance in this jurisdiction of the principles applied by the U.S. Supreme Court in cases such as *New York Times* and *Garrison*.”); *Sociedad Interamericana de Prensa*, Uruguay, May 9, 2013, available at <https://en.sipiapa.org/notas/1126437-uruguay>; Supreme Court of India, *R. Rajagopal v. State of Tamil Nadu*, (1994) SCC (6) 632.

public figures). In judgments issued prior to the Joint Decree, courts held that the offence under Article 27(3) is subjective; it depends not on the intent of the defendant but on the feeling of the victim that their good name or honor has been attacked.²⁷⁶ In one judgment, the court held that the victim can determine which part of the information or electronic document attacks their honor or reputation.²⁷⁷

The Joint Decree introduced a requirement of intention, stating that the focus of Article 27(3) is not on the feelings of the victim, but rather “on the action of the accused who knowingly and with intent” makes accessible information that is defamatory. Yet courts and police/prosecutors in Indonesia still did not examine the intention to defame, as evidenced by our dataset.

In one judgment issued after the Joint Decree, a court held that the offence of defamation “concerns the inner attitude of a person who is affronted or who feels that his or her honor has been belittled and affronted.”²⁷⁸ In another, a Court held that “what is meant by intentionally and without right is that the Defendant has committed an act with full awareness of what he has done and the Defendant knows the consequences of his actions.”²⁷⁹

In Marzuki’s case, for example, the Judges did not examine whether Marzuki had the intention to defame, instead referring to the fact that Marzuki “intentionally” organized the rally and uploaded the content on YouTube and Facebook. The Court relied on an expert who testified that the words on the posters carried by the protesters “can be offensive or humiliating to Witness Nawal Lubis,” while rejecting the findings of another expert who testified to the contrary.²⁸⁰ As per the standards referred to above, Marzuki could only have

²⁷⁶ Yogyakarta District Court Judgment, Case No. 382/Pid.Sus/2014/PN.Yyk, *as cited in* Rositawati at 81.

²⁷⁷ *Id.*

²⁷⁸ District Court of Tanjungpinang, Case No. 196/Pid.Sus/2023/PN Tpg at pg. 21 (unofficial English Translation).

²⁷⁹ Kepanjen District Court Judgment [translation], Case No. 434/Pid.Sus/2022/PN Kpn, pg. 48. (unofficial English Translation). see also District Court of Tanjungpinang, Case No. 196/Pid.Sus/2023/PN Tpg, pg. 20 (The court stated that the defendant satisfied the element of intent under Article 27(3), explaining that “‘with intention’ in simple terms is being aware of and realizing one’s actions.”).

²⁸⁰ See Medan District Court Decision [translation], Case No. 776/Pid.Sus/2022/PN Mdn, pg. 31 (“Taking into consideration, although Mitigating Witness Dr. Charles Butar-Butar stated that the words on the poster were not accusatory and there was no element of insult, the Panel of Judges expressed their disagreement, as the incident evidently accused Witness Nawal Lubis (“Bunda NL”) of being the perpetrator who caused damage to Benteng Putri Hijau.”).

been prosecuted if he acted with actual malice, since Nawal Lubis was a public figure.²⁸¹

In another case, two members of Indonesia Corruption Watch (ICW), a prominent anti-corruption organisation in Indonesia, faced a complaint under Article 27(3) for a press release issued by ICW on a study that alleged the involvement of public officials, including General Moeldoko, the then Presidential Chief of Staff, in promoting the circulation of the drug Ivermectin during the COVID-19 pandemic.²⁸² Moeldoko's lawyers issued three warning letters to the researchers, threatening them with police action if they did not retract the statement and apologize.²⁸³ Finally, Moeldoko reported both researchers to the police under Article 27(3) of the EIT Law and Articles 310 and 311 of the Criminal Code. As of November 2023, the complaint was still pending, and there was no letter of dismissal for the case. As per international standards, such a complaint could have been entertained only *if* the researchers acted with malice.

In yet another instance of defamation litigation, the court placed considerable emphasis on the emotional and reputational harm described by the complainants, including feelings of embarrassment, stress, and damage to their

²⁸¹ See *Gertz v. Robert Welch, Inc.*, 418 U.S. 323, 345 (1974) (Defining public figure status as “those who ... have assumed roles of special prominence in the affairs of society. Some occupy positions of such persuasive power and influence that they are deemed public figures for all purposes. More commonly, those classed as public figures have thrust themselves to the forefront of particular public controversies in order to influence the resolution of the issues involved. In either event, they invite attention and comment.”); *Time, Inc. v. Firestone*, 424 U.S. 448, 453 (1976); *Hutchinson v. Proxmire*, 443 U.S. 111 (1979); *Mile Marker, Inc. v. Petersen Publ'g, L.L.C.*, 811 So. 2d 841, 845 (Fla. 4th DCA 2002) (explaining that “public figures” are classified into two categories: (1) general public figures, individuals who possess the “requisite fame or notoriety” within a community and are always considered public figures, and (2) limited public figures, individuals who have voluntarily “thrust themselves to the forefront of” specific public controversies with the intent to influence their resolution. To determine whether a claimant is a limited public figure or a private individual, courts follow a two-step process. First, the court must identify whether a “public controversy” exists. In doing so, the court “should ask whether a reasonable person would have expected persons beyond the immediate participants in the dispute to feel the impact of its resolution.”).

²⁸² Front Line Defenders, Human Rights Defenders Egi Primayogha and Miftachul Choir Reported to the Police on Charges of Defamation, *available at* <https://www.frontlinedefenders.org/en/case/human-rights-defenders-egi-primayogha-and-miftachul-choir-reported-police-charges-defamation>.

²⁸³ Egi Adyatama, Kronologi Pelaporan Moeldoko terhadap ICW: dari Somasi Berujung di Polisi (Chronology of Moeldoko's Reporting of ICW: from Subpoena to Police), *Tempo*, Sept. 11, 2021, *available at* <https://nasional.tempo.co/read/1504917/kronologi-pelaporan-moeldoko-terhadap-icw-dari-somasi-berujung-di-polisi>.

business reputation.²⁸⁴ Rather than focusing on the defendant's intent to defame, the court relied on the complainants' evidence of their subjective experiences.

Neither the revised EIT Law nor the Criminal Code incorporate a sufficiently higher requirement of intention. Article 27A of the revised EIT Law increases the *mens rea* requirement from "knowingly and without right" to "intentionally." Article 36 of the new Criminal Code lays down the general rule that a person can only be liable for a crime committed "intentionally or due to negligence." However, as discussed above, Indonesian authorities look at the intention to publish/publicise the alleged defamatory material, rather than the intention to defame.

Indonesia's Constitutional Court recently examined the elements of "intentionally" and "without rights" with regard to Article 28(2), the hate speech provision in the EIT Law. It reiterated that the defendant must know and want that the act of distributing the information in question would cause hatred or hostility.²⁸⁵ Taken together, the different approaches of the courts to intent are further evidence of the vagueness of the defamation provisions.

Similar to Article 310 in the old Criminal Code, Article 433 of the new Criminal Code merely states that the act of defamation must be with "the intent for such matter to be known publicly."

Concerningly, the new Criminal Code has separate provisions (Article 218-219) prohibiting "assaulting the honor or dignity or prestige" of the President and Vice President. Provisions similar to these were struck down as unconstitutional in 2006.²⁸⁶ The commentary to Article 218 defines the offence as "any act which degrades or damages reputation or pride [of the President/Vice President], including blasphemy or calumny." While Article 433 and Article 218 have public interest exceptions (discussed below), both permit prosecuting speech made in good faith, without an intention to defame, contrary to international standards. Article 218 provides for three-year imprisonment, which can be increased to four years under Article 219 when an individual intentionally makes such comments known to the public.

Public Interest

²⁸⁴ Kepanjen District Court Judgment [translation], Case No. 434/Pid.Sus/2022/PN Kpn, pg. 50.

²⁸⁵ Constitutional Court Decision No. 105 PUU-XXII/2024, at 453 (unofficial English translation).

²⁸⁶ Constitutional Court Judgment, Case No. 013-022/PUU-IV/2006, pgs. 60–61, as cited in Rositawati at 44–45.

The Human Rights Committee has emphasized the importance of safeguarding public debate and the ability to criticize public officials. As established by the HRC, Article 19 of the ICCPR covers “political discourse, commentary on one’s own and on public affairs ... discussion of human rights, [and] journalism.”²⁸⁷ In interpreting Article 19, the Committee has stated: “the value placed by the [ICCPR] upon uninhibited expression is particularly high in the circumstances of public debate in a democratic society concerning figures in the public and political domain.”²⁸⁸

In addition to encouraging the decriminalization of defamation, the HRC has stressed that “a public interest in the subject matter . . . should be recognized as a defence.”²⁸⁹

While Indonesian law provides for a public interest defense for defamation, it is subject to limitations. The Constitutional Court and the 2016 Amendments each clarified that Article 27(3) of the EIT Law should be interpreted with reference to Article 310;²⁹⁰ Article 310(3) admits an affirmative defense where a defendant can prove that they acted in the “general interest” of the public.²⁹¹ In 2011, the Supreme Court of Indonesia held that when public interest is being considered as a defense for defamation, the following two conditions must be satisfied: “First, the nature and contents of the accusation are not solely for the personal benefit of the accuser, but for other people or anyone who will and wants to be in contact with the accused person; Second, the content of what is accused must contain the truth.”²⁹² Applying this standard, the Court acquitted a defendant charged under Article 27(3) for complaining about hospital services online.

Despite this broad understanding of public interest,” courts and police/prosecutors do not seem to apply it in practice. In several cases cited above, the defendants were acting in public interest— whether it was Marzuki pointing to damage to a heritage site, Haris and Fatia drawing attention to a Minister’s commercial interest in a mining project, Tinus reporting on a government official being involved in a land dispute or ICW researchers publishing studies on corruption. In one case, a doctor faced charges under

²⁸⁷ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 11.

²⁸⁸ *Id.* at para. 34.

²⁸⁹ *Id.* at para. 47.

²⁹⁰ Adhigama Budiman et al., *supra*, pgs. 12 and 14.

²⁹¹ Old Criminal Code, Article 310(3).

²⁹² Mahkamah Agung Judgment, Case No. 225 PK/PID.SUS/2011, pgs. 36–37, *as cited in* Rositawati at 138.

Article 27(3) for posting warnings about lab tests that revealed dangerous levels of toxic ingredients in beauty products promoted by celebrities.²⁹³ Almost 60 percent of the cases under Article 27(3) analysed for this report that were instituted or continued after the Joint Decree concerned a matter of public interest.²⁹⁴

Further, the requirement in Indonesian law that speech in public interest must “contain the truth” is contrary to international standards. This requirement allows for prosecution of statements made without “actual malice” (as discussed above) and of value judgments that are not susceptible to proof of truth. In one case (prior to the Joint Decree) a court held that “it is true that every member of the public has the right to criticize the performance of public services, but it must be within the corridors of applicable law by conveying substantial information about poor public services, not by accusing a crime that can defame other people.”²⁹⁵ This requirement that public interest speech must be “constructive” leaves the determination of whether the speech is protected in the hands of the authorities.

This notion of “constructive” criticism is present in the revised EIT Law and new Criminal Code. While both have public interest exceptions for “defamatory” speech,²⁹⁶ legislative commentary on Article 27A of the EIT Law limits the public interest exception, stating that any criticism of the government must be “constructive” and in the form of “supervision, correction, and suggestions in the public interest.”

As recently as April 2025, Indonesia’s Constitutional Court reaffirmed the public interest defense to defamation. In a case that examined the defamation provisions in both the old Criminal Code and the amended EIT Law, the Court reiterated that citizens who offer public commentary in the public interest should not be criminalized simply for exercising their constitutional right to express their opinions in public.²⁹⁷ The Court held that the “the meaning of public interest is the interest of the majority of the community, including the interests of the nation and state.”²⁹⁸ Further, it held that the state should not accommodate regulations

²⁹³ South Jakarta District Court, Case No. 99/Pid.Pra/2022/PN, pgs. 3–4, 8–12.

²⁹⁴ Despite stipulations of the Joint Decree, most of these cases were either stalled or taken forward by law enforcement. See *supra* para. 34.

²⁹⁵ Palembang District Court Judgment, Case No. 1345/Pid.B/2014/PN.Plg, as cited in Rositawati at 133.

²⁹⁶ Amended EIT Law, Article 45(7)(a).

²⁹⁷ See Constitutional Court Decision No. 115/PUU-XXII/2024 (unofficial English translation).

²⁹⁸ See Constitutional Court Decision No. 115/PUU-XXII/2024 (unofficial English translation).

that open legal loopholes for the criminalization of citizens who criticize government policies or state administrators for abusing their authority.²⁹⁹

However, in the new Criminal Code, public interest speech can be prosecuted under Article 433 as well as Article 240 (insulting government or state institutions) and Articles 218-219 (assaulting the dignity of the President/Vice President). The commentaries to Article 218 and Article 240 state that criticism must be “as constructive as possible” and in the “form of supervision, correction, and suggestion on matters related to the interest of the community.” This affords the authorities discretion to deem protected criticism “unconstructive” or not delivered in a “proper form” and is thus susceptible to arbitrariness and abuse.³⁰⁰ In 2006, the Indonesian Constitutional Court struck down provisions in the old Criminal Code corresponding to Articles 218-219, on the ground that they depend on subjective interpretation of whether a protest, expression of opinion or thought constitutes a criticism or defamation to the President and / or the Vice President.³⁰¹

While Article 433 also has a public interest speech exception, penalties are increased by one third “if the person against whom the derogation or false accusation is [made is] a public official performing their lawful duty,”³⁰² which strikes at the heart of public interest speech. There are, thus, serious concerns that public interest speech will be criminalized under the new Criminal Code.

Delays in Trial

The Human Rights Committee has held that it is “impermissible for a State party to indict a person for criminal defamation but then not to proceed to trial expeditiously – such a practice has a chilling effect that may unduly restrict the exercise of freedom of expression of the person concerned and others.”³⁰³

The majority of the cases filed under Article 27(3) remain pending at the inquiry/investigation stage with no resolution for years, leaving the accused persons at the mercy of the authorities. One example of the implications of this is the case of Meila Nurul Fajriah, a lawyer and human rights defender working with YLBHI (Indonesia Legal Aid Foundation), who was reported to the police

²⁹⁹ See Constitutional Court Decision No. 115/PUU-XXII/2024 (unofficial English translation).

³⁰⁰ Elucidation on the Amended EIT Law.

³⁰¹ Constitutional Court Judgment, Case No. 013-022/PUU-IV/2006, pgs. 60–61, *as cited in* Rositawati at 44–45.

³⁰² New Criminal Code, Article 441(2).

³⁰³ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 47.

for her advocacy for victims of sexual harassment.³⁰⁴ On May 4, 2020, Meila conducted a press conference where she stated that that Jogjakarta Legal Aid had received complaints from as many as 30 victims saying they had been sexually harassed by one former student. This accused student reported Meila to the police for defamation in October/November 2020. Four years later, the investigation of the case suddenly resumed and Meila was declared a suspect in the case on June 24, 2024.³⁰⁵ The investigation was finally terminated in August 2024, after civil society groups, including ICJR, wrote to the police explaining that prosecuting the case would be against the stipulations of the Joint Decree.

In another case, a complaint against the lecturer of a university remained pending for close to five years before being terminated by the police.³⁰⁶ The lecturer was charged under Article 27(3) for criticising the policies of the dean of the university in a closed WhatsApp group. He was declared a suspect two years after the complaint was filed, until the complaint was finally terminated for lack of evidence.³⁰⁷

In the case of Dr. Richard Lee (who was charged for posting warnings regarding toxic ingredients in beauty products), the investigation stretched over 21 months without sufficient evidence.³⁰⁸ The doctor was eventually forced to apply to the court for relief, and the Court declared that the declaration of the doctor as a suspect was invalid as it was not based on sufficient preliminary evidence.³⁰⁹ The court also found that the case should never have proceeded in the first place, as the original complaint was not filed directly by the alleged victim, but by her legal representative—violating the requirement under Article 27(3) of the

³⁰⁴ Front Line Defenders, Meila Nurul Fajriah, *available at* <https://www.frontlinedefenders.org/fr/profile/meila-nurul-fajriah>.

³⁰⁵ Tempo, Profil Meila Nurul Fajriah, Advokat LBH Yogyakarta Pembela 30 Korban Pelecehan Seksual Malah Dijadikan Tersangka (Profile of Meila Nurul Fajriah, Yogyakarta Legal Aid Advocate Defending 30 Sexual Harassment Victims, Now Named as a Suspect), July 28, 2024, *available at* <https://www.tempo.co/arsip/profil-meila-nurul-fajriah-advokat-lbh-yogyakarta-pembela-30-korban-pelecehan-seksual-malah-dijadikan-tersangka-35794>.

³⁰⁶ Muhammad Yunus, Kisah Ramsiah Tasruddin Dosen UIN Alauddin Berjuang Hadapi Ancaman Jeratan UU ITE di Polres Gowa (The Story of Ramsiah Tasruddin, UIN Alauddin Lecturer, Fighting Against the Threat of UU ITE Charges at Gowa Police), SuaraSulsel, Feb. 7, 2022, *available at* https://sulsel.suara.com/read/2022/02/07/150043/kisah-ramsiah-tasruddin-dosen-uin-alauddin-berjuang-hadapi-ancaman-jeratan-uu-ite-di-polres-gowa#goog_rewarded.

³⁰⁷ *Id.*

³⁰⁸ South Jakarta District Court, Case No. 99/Pid.Pra/2022/PN, pgs. 18, 42.

³⁰⁹ South Jakarta District Court, Case No. 99/Pid.Pra/2022/PN, pg. 105.

ITE Law that absolute complaint offenses must be reported personally by the victim.³¹⁰

In another case, the defendant faced charges under Article 27(3) and was arrested for sharing images of the complainant on Instagram, along with captions referencing reports about the complainant's alleged abuse of a security guard.³¹¹ The defendant was subject to detention for 64 days and the case was finally dismissed by the District Court after 7 months due to the prosecution's failure to present the complainant, whose testimony was required under Article 27(3) of the ITE Law.³¹²

Among the Article 27(3) cases analysed for this report, as of October 1, 2024, almost 45% continue to be pending (as per public sources), despite many of them being contrary to the guidelines under the Joint Decree.

C. Hate Speech

Article 20(2) of the ICCPR requires States to prohibit “any advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence.” However, any such prohibition on speech must comply with the requirements of Article 19.³¹³ Therefore, they must be provided by law (principle of legality), be narrowly defined to serve a legitimate interest and be necessary and proportionate to protect that interest.³¹⁴

In order to assess whether the restriction on speech is “necessary,” states must assess the potential harm arising from hate speech, the causal link between speech and harm and the intent of the speaker.³¹⁵ The Rabat Plan of Action, issued by the UN High Commissioner for Human Rights, provides guidance on balancing the prohibition of incitement to national, racial or religious hatred, with

³¹⁰ *Id.* at pgs. 98–99, 101–103. (The court also referred to the Joint Decree, which clarifies that Article 27(3) requires a complaint filed directly by the victim—not their lawyer).

³¹¹ See Statement of Facts for the first charge under Article 36 in conjunction with Article 27(3) and Article 51(2) of Law No. 19/2016 on Electronic Information and Transactions (ITE Law), Serang District Court, Case No. 853/Pid.Sus/2022/PN, pgs. 2–4; the second charge under Article 27(3) jo. Article 45(3) of the same law, *id.* at pgs. 7–8; and the third charge under Article 311 of the Indonesian Criminal Code, *id.* at pgs. 11–14.

³¹² *Id.* at pgs. 89–94.

³¹³ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, paras. 50–52.

³¹⁴ See Rabat Plan of Action, para. 18.

³¹⁵ Amal Clooney & David Neuberger, *supra*, pgs. 191–193.

respect for freedom of expression.³¹⁶ The Plan urges that criminal sanctions for expression be “last resort measures to be applied only in strictly justifiable situations.”³¹⁷

As per the Rabat Plan, speech can amount to a criminal offense and be subject to criminal penalties only if it meets a six-part threshold test that requires examination of (a) the social and political context at the time the speech was made and disseminated; (b) the speaker’s position or status within society and vis-à-vis the audience to whom the speech was directed; (c) the speaker’s intent to incite hatred; (d) the content and form of the speech; (e) the extent of the speech act; and (f) the reasonable probability that the speech would cause imminent harm against the target group.³¹⁸

An assessment of whether hate speech restrictions are ‘necessary’ also includes an analysis of the proportionality of the penalty imposed.³¹⁹ In a concurring opinion in *Rabbae v. Netherlands*, two members of the Human Rights Committee suggested that criminal penalties should be limited to speech “that incites the commission of criminal offences or acts of violence.”³²⁰ South Africa’s Constitutional Court found that the country’s incitement law, which criminalized the incitement of “any offence,” was a disproportionate restriction on the freedom of speech – the Court read down the law and held that only incitement to “serious offences” could be criminalized.³²¹

Article 28(2), the hate speech provision in the EIT law, fails to reflect these standards. The law is vague, allowing for a wide array of speech to fall under its trap. Any person/group can claim to be a victim of “hate speech” since the provision does not specify the groups that can be the target groups clearly. Further, it does not require an intention to incite hatred, or an “imminent risk” that the speech will cause harm. This legal stance defies both international law, under which such intention or imminent risk are required, and Indonesia’s own Constitutional Court, which reiterated recently that criminalization of hate speech must focus on intent and incitement to cause real harm, not general

³¹⁶ Rabat Plan of Action.

³¹⁷ *Id.* at para. 34.

³¹⁸ *Id.* at para. 29.

³¹⁹ Amal Clooney & David Neuberger, *supra*, pg. 204.

³²⁰ UNHRC, *Rabbae v. The Netherlands*, July 14, 2016, Individual Concurring Opinion of Committee members Sarah Cleveland and Mauro Politi, paras. 7–8.

³²¹ Constitutional Court of South Africa, *Economic Freedom Fighters and Others v. Minister of Justice and Correctional Services and Others*, Case CCT 201/19, Nov. 27, 2020, para. 51, 57-72, available at <https://www.saflii.org/za/cases/ZACC/2020/25.pdf>.

categories of “hatred” that chill legitimate speech.³²² The Court referred to both the UN Human Rights Committee in General Comment No. 34 and the Rabat Plan of Action when stating that “the prohibition of expression can only be justified if the expression meets strict criteria, namely: (i) it is done with malicious intent (intention to incite), (ii) it is directed specifically at a particular identity group, and (iii) it creates a real and imminent risk of discrimination, hostility, or violence.”³²³

Each of these issues is discussed in detail below, with an analysis of the extent to which these flaws are rectified by the amended EIT Law or the new Criminal Code.

Principle of Legality

As explained above, international law requires that legislation restricting speech be “formulated with sufficient precision” such that it does not “confer unfettered discretion for the restriction of freedom of expression on those charged with its execution.”³²⁴ The Rabat Plan recommends that “States ... consider including robust definitions of key terms such as hatred, discrimination, violence, hostility, among others” so as to avoid opening the door to prosecutions based on criticism, insult, and inappropriate words.³²⁵ The UN Special Rapporteur on Freedom of Expression has, for example, suggested “hatred” be defined as a “state of mind characterized as intense and irrational emotions” of “enmity and detestation towards the target group.”³²⁶ Similarly, hostility should be interpreted as a “manifestation of hatred beyond a mere state of mind.”³²⁷

Article 28(2) fails to meet this requirement. It does not define key terms such as “hatred” and “hostility.” In the absence of such definition, courts reportedly refer to the Indonesian dictionary, expert opinions and even blogs to interpret the elements of crime in Article 28(2).³²⁸ Such subjective interpretation, facilitated

³²² See Constitutional Court Decision No. 105/PUU-XXII/2024 (unofficial English translation).

³²³ Constitutional Court Decision No. 105/PUU-XXII/2024, at 456 (unofficial English translation).

³²⁴ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 25.

³²⁵ See Rabat Plan of Action, para. 21.

³²⁶ UN Special Rapporteur, Promotion and Protection of the Right to Freedom of Opinion and Expression, U.N. Doc. A/67/357, Sept. 7, 2012, para. 44(a).

³²⁷ *Id.* at para. 44(e).

³²⁸ See Rositawati at 181, 193 (In one case, the meaning of the various words in Article 28(2) such as “spread”, “information”, “aimed at”, “raise”, “hostility”, “individual”, “group”, “community”, “ethnic”, “religion”, “race”, and “inter-group” was taken from the Indonesian dictionary or expert opinion.).

by the vague language of the provision, makes the law particularly susceptible to abuse.

Article 28(2) also fails to clearly specify the groups that can be the target of hate speech. The term “intergroup” has allowed for individuals associated with any group, ranging from professional organizations to sports teams, political parties and affiliations to bring prosecutions for hate speech.³²⁹

The Joint Decree did not address these gaps. The Decree neither defined hatred or hostility, nor did it restrict the groups that could be the target of hate speech, as will be discussed in further detail below. As a result, prosecutions have been brought based on little more than hurt feelings, as evident in the cases of Daniel Frits and Roy Suryo and others in the dataset, discussed in more detail below.

While the amended EIT Law provides clarity on the identities and groups that can be the target of hate speech, it does not define hatred or hostility.

The hate speech provision in the new Criminal Code similarly does not define the term “hostility,” but it adds a requirement that violence or property damage result from the speech in question.³³⁰ This increases the threshold for prosecutions to be brought under the provision.

Target of Hate Speech

As per international law, the “sole purpose” of laws prohibiting hate speech “is to protect individuals and communities belonging to ethnic, national or religious groups ... from hostility, discrimination or violence.”³³¹ The law cannot be used “to protect belief systems, religions or institutions as such from criticism. The right to freedom of expression implies that it should be possible to scrutinize, openly debate and criticize belief systems, opinions and institutions.”³³²

The United Nations defines hate speech as a communication that attacks or discriminates against a person or a group “on the basis of who they are, or in other words, based on their religion, ethnicity, nationality, race, colour, descent, gender or other *identity factor*.”³³³

³²⁹ Adhigama Budiman et al., *supra*, pg. 8.

³³⁰ New Criminal Code, Article 243.

³³¹ Rabat Plan of Action, para. 11.

³³² *Id.* at para. 11.

³³³ UN Strategy and Plan of Action on Hate Speech, pg. 2 (2019) (emphasis added), *available at*

In 2017, the Indonesian Constitutional Court interpreted the term “inter-group” under Article 28(2) as including not only religious, ethnic and racial groups, but all entities that are not represented or embodied by the terms ethnicity, religion and race,³³⁴ thereby allowing any person/group of persons to claim to be a victim under the law. Prominent cases prior to the issuance of the Joint Decree that demonstrate the abuse of the law include the conviction of the musician Jerinx for statements made against the Indonesian Medical Association³³⁵ and the prosecution of journalist Mohammad Yusuf based on his report on the land disputes between farmers and a palm oil plantation company (discussed in further detail below).³³⁶

The Joint Decree did not restrict the groups that could be the target of hate speech; instead, the Joint Decree reiterated the 2017 Constitutional Court’s ruling. As a result, Article 28(2) continued to be weaponized to target speech that is deemed critical by any group of people—be it the police, armed forces, government officials, professional associations or companies.

In almost 40 percent of the cases analysed for this report, the so-called “target group” were police officials or politicians. This trend is extremely concerning given the heightened value under the ICCPR on speech concerning “public and political figures.”

In Roy Suryo’s case, for example, the Judges held that apart from Buddhists, supporters of the President were also victims of the images circulated by Suryo. The Judges held that “the Defendant ought to have realized that the President of the Republic of Indonesia is the leader of the country that should be respected.”³³⁷

Suryo was not the only one prosecuted for not respecting the President. In 2022, a 27-year-old man was reported under Article 28(2) for posting the following comment on Instagram: “I don’t know what is the sin of the Indonesian people

<https://www.un.org/en/genocideprevention/documents/UN%20Strategy%20and%20Plan%20of%20Action%20on%20Hate%20Speech%2018%20June%20SYNOPSIS.pdf>.

³³⁴ Constitutional Court Decision, Case No. 76/PUU-XV/2017, *as cited in* Rositawati at 169, 171–172, & 184.

³³⁵ Rositawati at 165.

³³⁶ *Id.*

³³⁷ West Jakarta District Court Judgment [translation], Case No. 890/Pid.Sus/2022/PN.Jkt.Brt, pg. 70 (2022).

to have a cursed president like Jokowi.”³³⁸ He was arrested and detained for 11 days.

In Madilis’ case discussed above, the law was used to target criticism of the local police. This was not an isolated incident—in another case, three individuals were reported for violating Article 28(2) after posting tweets joking about the police enriching themselves with items confiscated from suspects.³³⁹ The investigation against two of the accused was completed as of April 2023 and they are presumably awaiting trial.³⁴⁰

In yet another case, the chairman of a cooperative was charged under Article 28(2) for posting a YouTube video alleging corruption and the misappropriation of public aid funds by the governor and other officials.³⁴¹ The court relied heavily on the testimony of an expert witness, who stated that the language used by the defendant was not appropriate— that words like “state criminals must be eliminated” and “corrupt cows” could cause uproar in the public and cause hatred towards individuals/groups.³⁴² Ultimately, the court found the defendant guilty, stating that his statements were intended to provoke public hostility against the provincial government, undermine its authority, and create public unrest and demonstrations.³⁴³ The court adopted the interpretation that “intergroup” includes government institutions and political parties.³⁴⁴

Article 28(2) was also used by powerful local groups to silence criticism. In August 2022, Wahyu Dwi Nugroho, a small business owner, was reported for a

³³⁸ Semua Bisa Kena, Kisruh Organisasi Hingga Pencemaran Nama Presiden (Organizational Disputes and Defamation of the President), July 7, 2022, *available at* <https://semuabisakena.jaring.id/2022/07/07/kisruh-organisasi-hingga-pencemaran-nama-presiden/>.

³³⁹ Rakhmad Hidayatullo Permana, Unggahan ‘Baju Bekas Dibawa Pulang’ Berujung Admin Menfess Masuk Tahanan (‘Used Clothes Taken Home’ Upload Leads to Admin Menfess Entering Detention), Detik, Apr. 7, 2023, *available at* <https://news.detik.com/berita/d-6661561/unggahan-baju-bekas-dibawa-pulang-berujung-admin-menfess-masuk-tahanan/2>.

³⁴⁰ The two accused are also charged under fake news, or ‘hoax’ provisions. See Rizky Syahrial & Nursita Sari, Polda Metro Bebaskan Pembuat Hoaks Polisi Tilap Barang Bukti Baju Bekas Impor, Ini Alasannya (Metro Police Frees Hoax Maker About Officer Stealing Evidence of Imported Secondhand Clothes, Here’s the Reason), Kompas, Aug. 1, 2023, *available at* <https://megapolitan.kompas.com/read/2023/08/01/18311061/polda-metro-bebaskan-pembuat-hoaks-polisi-tilap-barang-bukti-baju-bekas>.

³⁴¹ Mataram District Court, Caso No. 256/Pid.Sus/2022/PN, pgs. 4–6.

³⁴² *Id.* at pgs. 90-91

³⁴³ *Id.* at pgs. 97–103.

³⁴⁴ *Id.* at pgs. 74, 84, 91.

TikTok video where he criticized a banner put up by a religious group calling for a boycott of all businesses that were not sanctioned by the group.³⁴⁵ Nugroho, whose business would be impacted by this boycott, took to TikTok after attempts to raise the issue with the neighborhood chief.³⁴⁶ He was summoned several times for investigation and was eventually arrested in March 2023. Nugroho remained in pre-trial detention until August 2023, when he was convicted and sentenced to 5 months imprisonment. Nugroho's case demonstrates the deleterious impacts of facing charges under Article 28(2)—he was repeatedly summoned, arrested and ultimately convicted—only for voicing legitimate complaints about circumstances that could lead to the loss of his livelihood.

The revised Article 28(2) in the amended EIT Law and the new Criminal Code is a step in the right direction—it specifies that the hatred or hostility must be directed towards individuals or groups “based on race, nationality, ethnicity, skin color, religion, beliefs, gender, mental disability, or physical disability.” The hate speech provision in the new Criminal Code also specifies the same target groups. However, the recent use of Article 28(2) against human rights defenders in relation to the protests in August-September, 2025, raises concern that instead of focussing on curbing hate speech against persons due to their identity, the law is still being misused by the government.³⁴⁷

Intention to Incite Hatred

The Rabat Action Plan clarifies that “mere distribution or circulation of material” or “[n]egligence and recklessness are not sufficient for an act to be an offence under article 20 of the Covenant, as this article provides for ‘advocacy’ and ‘incitement.’”³⁴⁸ The term “advocacy” in Article 20 ICCPR has been defined as “explicit, *intentional*, public and active support and promotion of hatred towards the target group.”³⁴⁹

³⁴⁵ South Jakarta District Court, Case No. 283/Pid.Sus/2023/PN, pgs. 3–4. See also Johannes Nugroho, Is Indonesia's ‘Elastic’ Cyber Law Wrecking Ordinary Lives, Destroying Small Businesses?, SCMP, July 15, 2023, *available at* <https://www.scmp.com/week-asia/economics/article/3227681/indonesias-elastic-cyber-law-wrecking-ordinary-lives-destroying-small-businesses>.

³⁴⁶ *Id.*

³⁴⁷ SAFEnet, International civil society strongly condemn digital crackdown by the Government of Indonesia and Big Tech, Sept. 10, 2025, *available at* <https://safenet.or.id/2025/09/international-civil-society-strongly-condemn-digital-crackdown-by-the-government-of-indonesia-and-big-tech/>.

³⁴⁸ Rabat Plan of Action, para. 29.

³⁴⁹ UN Special Rapporteur, Promotion and Protection of the Right to Freedom of Opinion and Expression, U.N. Doc. A/67/357, Sept. 7, 2012, para. 44(b) (emphasis added).

The UN Special Rapporteur on Freedom of Expression has likewise held that “no one should be penalized for the dissemination of hate speech unless it has been shown that they did so with the intention of inciting discrimination, hostility or violence.”³⁵⁰ The intention of the speaker is also relevant while determining whether the restriction on speech is “necessary” under Article 19(3).³⁵¹

In contravention of these standards, Article 28(2) only requires that the offending information was disseminated “intentionally.” As noted in an EU report on the EIT Law, “the fundamental problem of Article 28(2) of the EIT Law is that in order for *mens rea* to be fulfilled, the prosecution need only to prove that the defendant had the intention of spreading the content, instead of proving an intent to incite hatred/violence.”³⁵² In one case, judges concluded that because the defendant had posted the information on his Facebook status, his intention to raise feelings of hatred was clear.³⁵³

The Joint Decree addressed this gap by stating that “[t]he deed prohibited under this article is *where the motive is to incite hatred and/or animosity based on ethnic, religious, racial, or inter-group sentiments.*” The Joint Decree also required law enforcement to prove the motive “by establishing that the content calls, influences, motivates, incites/pits people against each other *in order to create hatred and/or hostility.*” Yet, in none of the cases analysed for this report was there an evident intent to incite hatred.³⁵⁴

As mentioned above, in many cases, authorities used Article 28(2) to suppress criticism of the police, government officials and institutions. Even where the speech in question related to religion or race, law enforcement does not appear to have analyzed motivation to incite hatred. In one case, a bar announced a promotion of complimentary alcoholic beverages every Thursday for men named “Mohammad” and women named “Maria.”³⁵⁵ This was considered offensive to both Muslim and Christian communities and six employees of the bar were charged with Article 28(2), along with blasphemy provisions of the

³⁵⁰ *Id.* at para. 50(b).

³⁵¹ Amal Clooney & David Neuberger, *supra*, pg. 193.

³⁵² Adhigama Budiman et al., *supra*, pg. 9. See also Rositawati at 180 and 193.

³⁵³ Pandeglang District Court Judgment, Case No. 28/Pid.Sus/2018/PN Pdl, pgs. 77–78, as cited in Rositawati at 180.

³⁵⁴ Based on analysis of the speech at issue, at least as publicly reported.

³⁵⁵ South Jakarta District Court, Case No. 834/Pid.Sus/2022/PN, pgs. 6–8 [hereinafter Case No. 834]; South Jakarta District Court, Case No. 835/Pid.Sus/2022/PN, pgs. 4–6 [hereinafter Case No. 835]; South Jakarta District Court, Case No. 836/Pid.Sus/2022/PN, pgs. 5–8 [hereinafter Case No. 836].

Criminal Code, and were arrested pending trial.³⁵⁶ The defendants testified that the campaign's intent was purely promotional.³⁵⁷ The names were chosen based on research identifying the most common names in Indonesia to maximize reach.³⁵⁸ They emphasized they had no intent to offend any religion and had not anticipated the potential for religious sensitivity.³⁵⁹ The court, however, did not examine intent and relied heavily on prosecution experts who explained the religious significance of the names and claimed the campaign promoted hatred or hostility toward Muslims and Christians.³⁶⁰ The defense argued that Article 28(2) requires both *mens rea* and *actus reus*: (a) knowingly and publicly expressing blasphemy or hostility, and (b) evidence that the content actually incited hatred toward a specific group.³⁶¹ Neither was present. The court failed to engage with the defense's arguments and broadly asserted that sufficient evidence showed the defendants had violated Article 28(2) and acted negligently.³⁶² The defendants were sentenced to one year and four months' imprisonment and fined Rp 20,000,000 (convertible to one month's imprisonment if unpaid).³⁶³ This case also led to the business permit of the bar being revoked leading to the closure of 12 establishments in Jakarta, despite the management of the restaurant issuing an apology and clarifying on multiple occasions that there was no intention to insult religious sentiments with the promotion.³⁶⁴

Even in the case of Wahyu Dwi Nugroho mentioned above, the defendant explained that he made the TikTok post to express frustration over the banner by a religious group, Al-Busyuro, directing buyers to shop only from its

³⁵⁶ Case No. 834, pgs. 53–57; Case No. 835, pgs. 48–52; Case No. 836, pgs. 10, 13–28, 53.

³⁵⁷ Case No. 834, pgs. 39–41, 43; Case No. 835, pgs. 19–20, 24, 27, 29–31; Case No. 836, pgs. 34, 36–37.

³⁵⁸ Case No. 834, pgs. 39–41, 43; Case No. 835, pgs. 19–20, 24, 27, 29–31; Case No. 836, pgs. 34, 37.

³⁵⁹ Case No. 834, pgs. 39–41, 43; Case No. 835, pgs. 19–20, 24, 27, 29–31; Case No. 836, pgs. 34, 40.

³⁶⁰ Case No. 834, pgs. 34–39; Case No. 835, pgs. 32–39; Case No. 836, pgs. 29–33.

³⁶¹ Case No. 834, pgs. 45–46; Case No. 835, pgs. 40–41; Case No. 836, pgs. 41–42.

³⁶² Case No. 834, pgs. 60–61; Case No. 835, pg. 55; Case No. 836, pg. 56.

³⁶³ Case No. 834, pg. 62; Case No. 835, pg. 57; Case No. 836, pg. 58.

³⁶⁴ Yandri Daniel Damaledo, Daftar 12 Holywings di Jakarta yang Ditutup Anies & Apa Alasannya? (List of 12 Holywings in Jakarta Shut Down by Anies & What is the Reason?), Tirta, June 28, 2022, available at <https://tirta.id/daftar-12-holywings-di-jakarta-yang-ditutup-anies-apa-alasannya-gttC>.

members.³⁶⁵ In the comments to his post, he further stated that Al-Busyro's events caused road closures, pressured people to donate, and deterred customers from his shop.³⁶⁶ In convicting the defendant, the Court held that the defendant's post "influenced views among the public towards the Al Busyro Council and the Al Busyro Council [felt] insulted."³⁶⁷ The Court stated that the requirement of intention under Article 28(2) was fulfilled because the defendant "committed his actions with full awareness of what he intended to do"³⁶⁸ – the Court did not examine whether he intended to incite hatred.

In Roy Suryo's case, Suryo argued that his intention in reposting the image was not to create hatred, but merely to bring attention to the increase of the temple admission price. The Judges held that given his expertise, Suryo should have "criticiz[ed] the planned increase of the price of the admission ticket to the Borobudur temple in a more civilized manner."³⁶⁹ As mentioned above, the Court focused on the fact that Suryo's social media following was the largest among those who had shared the image, and that the complainant and witnesses felt "disappointment and anger" on seeing the post.

Even in Daniel Frits' case, one witness for the defense testified to Frits' motive, stating that the "Defendant's comment was due to his disappointment that his efforts on social media to educate people to be more environmentally-conscious failed to garner the response he was hoping for." Yet the Judges did not consider this, instead focusing on the fact that Frits' comments had created rifts in the community.³⁷⁰ The Court also held that Frits should have not directed his comments to the shrimp pond owners if his comments were in relation to the community at large.

These cases reflect troubling trends. First, courts look at the impact of the statements rather than the intention of the defendant. In all the cases discussed, the Courts relied on the negative reaction to the social media posts in question, or the feelings of the complainant, rather than the defendant's intention to cause 'hatred or hostility.'

³⁶⁵ South Jakarta District Court, Case No. 283/Pid.Sus/2023/PN, pg. 9.

³⁶⁶ *Id.* at pg. 4.

³⁶⁷ *Id.* at pgs. 19 (unofficial English translation)

³⁶⁸ *Id.* at pgs. 17 (unofficial English translation)

³⁶⁹ West Jakarta District Court Judgment [translation], Case No. 890/Pid.Sus/2022/PN.Jkt.Brt, pg. 75 (2022).

³⁷⁰ See *supra* Section Case Studies, pgs. 31–33.

Second, as was seen in cases under Article 27(3), courts rely on experts to discern the meaning of the defendant's words, rather than the context of the speech, as required by the Rabat Plan of Action.³⁷¹ In Frits's case, neither the police nor the courts considered the environmental damage caused by shrimp farming that Frits was trying to highlight. Instead, the Judges relied on the findings of a linguist, who testified that Frits' comment "means that people are stupid because shrimp brains are a figurative form or expression that describes stupidity."³⁷²

Finally, instead of examining the objective element of whether the defendants had intention to create hatred, Courts rely on their subjective views on how the defendants should have made the comments in question.

Neither the amended EIT Law nor the new Criminal Code address these issues. Article 28(2) of the amended EIT Law requires the intention to distribute or transmit content that incites, invites, or influences others to feel hatred or hostility. Although the element of "incitement" has been added in the amended EIT Law, the intent requirement is linked to the act of distribution and transmission, not to the act of inciting. This law was challenged before the Constitutional Court. The Court acknowledged that the vague wording of the law allowed for speech without any intention to incite hatred, such as reposting or sharing material, to be criminalized. The Court held that criminalization of hate speech must focus on intent and incitement to cause real harm.³⁷³

Article 243 in the new Criminal Code, which governs hate speech disseminated online, only requires an "intent to make the content known by the public" rather than an intention to create hatred or hostility. This law must be revised in line with the judgment of the Constitutional Court.

Imminent Risk of Harm Arising from the Expression

As per the Human Rights Committee, "[w]hen a State... invokes a legitimate ground for restricting freedom of expression, it must demonstrate in specific and individualized fashion the precise nature of the threat" caused by the speech, and establish "a direct and immediate connection between the expression and the threat."³⁷⁴ With respect to hate speech specifically, the Rabat Plan of Action requires "a reasonable probability that the speech would succeed in inciting

³⁷¹ Rabat Plan of Action, para. 29(a).

³⁷² District Court of Jepara Judgment [translation], Case No. 14/Pid.Sus/2024/PN Jpa, pg. 50.

³⁷³ See Constitutional Court Decision No. 105/PUU-XXII/2024 (unofficial English translation).

³⁷⁴ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 35.

actual action against the target group” and that “such causation should be rather direct.”³⁷⁵

Indonesia’s Constitutional Court has referred explicitly to the Rabat Plan of Action as an appropriate framework for addressing hate speech. It set out a three-part test, noting that the state “has an obligation to ensure that any restrictions on expression in that space remain subject to the principles of legality, legitimacy of purpose, and proportionality.”³⁷⁶

The potential harm that hate speech may cause is considered relevant by regional human rights bodies as well.³⁷⁷ The Special Rapporteur for Freedom of Expression appointed by the Inter-American Commission of Human Rights has said that States must demonstrate both “the existence of an impending threat that [the speech] could cause real harm” and that the restriction is necessary to prevent the harm.³⁷⁸

As discussed above, Article 28(2) criminalizes the very act of disseminating the information online, and does not require an examination of the potential harm or threat caused by the speech.

Although the Joint Decree does not require an imminent risk of harm, it does identify categories of speech that should be excluded from Article 28(2) prosecutions, stating that “conveyance of opinion, non-consenting statement or dislike towards an individual or group of society does not constitute a prohibited action.”

Despite this, people were prosecuted for merely expressing opinions online without any examination of the nexus between the speech and consequences.

In Dhandy’s case, merely reporting the news and drawing attention to riots in Papua led to him being detained and declared a suspect under Article 28(2). Article 28(2) was also used to arrest six people protesting the special autonomous status of Papua³⁷⁹ on the ground that the calls for protest on social

³⁷⁵ Rabat Plan of Action, para. 29(f).

³⁷⁶ Constitutional Court Decision No. 105 PUU-XXII/2024, at 442 (unofficial English translation).

³⁷⁷ See Amal Clooney & David Neuberger, *supra*, pgs. 194–196.

³⁷⁸ IACmHR, Annual Report of the Inter-American Commission on Human Rights: Report of the Special Rapporteur for Freedom of Expression, OEA/Ser.L/V/II., Doc. 51, pg. 397 (2009).

³⁷⁹ See Jefri Wenda Ditangkap, Juru bicara Petisi Rakyat Papua Jefri Wenda Ditangkap Terkait Provokasi, Dijerat UU ITE (Papuan People’s Petition Spokesperson Jefri Wenda Arrested in Connection with Provocation, Charged with ITE Law), *Tribun News*, May 11, 2022, *available at* <https://www.tribunnews.com/regional/2022/05/11/juru-bicara-petisi-rakyat-papua-jefri-wenda-ditangkap-terkait-provokasi-dijerat-uu-ite>; see also Jefri Wenda Ditangkap, Selain Juru Bicara Petisi Rakyat Papua, Ini Identitas 6 Orang Lainnya yang Ditangkap (In Addition to the

media had the “potential to disturb the community”³⁸⁰—it appears that law enforcement did not identify any specific harm or threat in any of these cases. Article 28(2) has also been used against a student activist for alleging sexual harassment by police officers when they stormed a Papuan study alliance meeting.³⁸¹ As per reports a Papuan lawyer and human rights defender also faced charges under Article 28(2).³⁸² These cases reflect the troubling trend that hate speech laws “are often employed to suppress the very minorities they purportedly are designed to protect.”³⁸³

Courts also do not inquire into the likelihood of the harm while interpreting Article 28(2). In Frits’ case, the Panel of Judges held that to violate Article 28(2) the speech “does not have to cause riots or violence” and the “sense of offence” and “sense of hatred” caused by Frits’ comments was enough to warrant conviction. As stated above, this “sense” of offence or hatred was discerned by the fact that certain people took objection to Frits’ comments, while others sided with him.

Courts in Indonesia look at the comments on social media to see whether a situation has the potential to generate feelings of hatred.³⁸⁴ In one case, the court held that “when the [social media] post in question generates both pro and con comments, it can be concluded that the post contains a provocation” because it leads to the “formation of opposing groups which is a state of hidden conflict and *can lead* to open conflict that is based on ethnic, religion, race and inter-group in nature.”³⁸⁵

Spokesperson for the Papuan People’s Petition, Here Are the Identities of 6 Other People Arrested), *Tribun News*, May 10, 2022, *available at* <https://www.tribunnews.com/regional/2022/05/10/selain-juru-bicara-petisi-rakyat-papua-ini-identitas-6-orang-lainnya-yang-ditangkap>.

³⁸⁰ Redaksi Koreri, Langgar UU ITE, Jubir PRP Jefri Wenda Terancam 6 Tahun Penjara, Denda 1 Miliar Rupiah (Violating the ITE Law, PRP Spokesperson Jefri Wenda Threatened with 6 Years in Prison, a Fine of 1 Billion Rupiah), May 10, 2022, *available at* <https://koreri.com/2022/05/10/langgar-uu-ite-jubir-prp-jefri-wenda-terancam-6-tahun-penjara-denda-1-miliar-rupiah/>.

³⁸¹ SAFEnet, Kasus Anin (Anin’s Case), *available at* <https://safenet.or.id/id/2018/12/kasus-anin/>.

³⁸² SAFEnet, Free Leo Idjie, Lawyer in the Kisor and LK Cases in West Papua, Jan. 24, 2022, *available at* <https://www.tapol.org/news/free-leo-idjie-lawyer-kisor-and-lk-cases-west-papua>.

³⁸³ UNHRC, *Rabbae v. The Netherlands* (Comm. No. 2124/2011), July 14, 2016, Individual Concurring Opinion of Committee members Sarah Cleveland and Mauro Politi, para. 8.

³⁸⁴ Rositawati at 183.

³⁸⁵ South Jakarta District Court Judgment, Case No. 370/Pid.Sus/2018/PN Jkt.Sel., pgs. 69–70, *as cited in* Rositawati at 182.

In another case, where the chairman of a cooperative alleged government corruption, the court relied on the prosecution's expert witnesses to conclude that the defendant's language "[*could*]" cause uproar among the public" and "*could* inspire others to commit violence and/or harm other people or groups."³⁸⁶ Such an approach is contrary to international law that requires the causation between the speech and the alleged harm to be direct.³⁸⁷

These issues could be related to be a fundamental disconnect between Indonesian courts and international law on the purpose of a hate speech law. In Frits' case, the court noted that the purpose of Article 28(2) is to "prevent vigilantism from a group of people who feel hatred due to the information circulated" and "to make sure that a group of people, namely the Karimunjawa community, does not take the law into their own hands against the Defendant." That is, the risk of violence seems to be *from* those being criticized, as opposed to the speech creating a risk of violence *against* those being criticized. This flips the purpose of the law on its head.

Article 28(2) in the amended EIT Law does not require imminent or resulting harm. The Constitutional Court held that the law must be interpreted to require actual consequences or harm, stating that "the concept of freedom is based on the harm principle, whereby state intervention in individual freedom is only legitimate if the expression poses a *real and imminent danger* to the rights or interests of others."³⁸⁸

The new Criminal Code, on the other hand, requires that the speech in question "results in violence against people or property"—thereby increasing the threshold for prosecution and bringing Indonesian law closer to international hate speech standards.

D. Fake News

The former UN Special Rapporteur on Freedom of Expression has stated "efforts to counter [fake news] could lead to censorship, the suppression of critical thinking and other approaches contrary to human rights law."³⁸⁹ The Special Rapporteurs on freedom of expression from the UN, American, African and OSCE systems have issued a Joint Declaration on 'Fake News,' Disinformation and Propaganda, stating that "[g]eneral prohibitions on the

³⁸⁶ Mataram District Court, Caso No. 256/Pid.Sus/2022/PN, pgs. 41, 84, 90.

³⁸⁷ See Rabat Plan of Action, para. 29.

³⁸⁸ Constitutional Court Decision No. 105 PUU-XXII/2024, at 441 (unofficial English translation).

³⁸⁹ Office of the High Commissioner for Human Rights, Freedom of Expression Monitors Issue Joint Declaration on 'Fake News,' Disinformation and Propaganda, Mar. 3, 2017, *available at* <https://www.ohchr.org/en/NewsEvents/Pages/DisplayNews.aspx?NewsID=21287&LangID=E>.

dissemination of information based on vague and ambiguous ideas, including ‘false news’ or ‘non-objective information’, are incompatible with international standards for restrictions on freedom of expression . . . and should be abolished.”³⁹⁰

In urging states to do away with the criminalization of so-called “false news,” the Declaration highlights the “importance of unencumbered access to a wide variety of both sources of information and ideas, and opportunities to disseminate them.”³⁹¹ The UN Special Rapporteur on Freedom of Expression has specifically underscored that “publishing or broadcasting ‘false’ or ‘alarmist’ information” should not be punishable by any imprisonment, as “prison terms are both reprehensible and out of proportion to the harm suffered by the victim.”³⁹²

As mentioned above, Fatiah Maulidiyanti and Haris Azhar challenged Articles 14 and 15 of Law No. 1/1946 before the Indonesian Constitutional Court on the ground that they violate the right to legal certainty and freedom to exercise their fundamental rights.³⁹³ Article 14(2) criminalized “[a]ny person disseminating news or issuing information that can cause disruption among the public, while such person ought to expect that such news or information is false.” Article 15 criminalized “[a]ny person disseminating uncertain or exaggerated or incomplete information, while such person understands [or] should at the least expect that such information will or can easily cause disruption among the public.” The Constitutional Court struck down Articles 14 and 15 as unconstitutional, on the ground that the wording of the provisions—“false news or information” and news “that is uncertain, or news that is exaggerated”—is ambiguous “due to the difficulty of determining the standards or parameters of the ‘truth’ of the information.”³⁹⁴ The Court acknowledged that the “the judgement of whether that information is ‘true’ or ‘exaggerated’ is highly

³⁹⁰ UN Special Rapporteur on Freedom of Opinion and Expression, the Organization for Security and Co-operation in Europe Representative on Freedom of the Media, the Organization of American States (OAS) Special Rapporteur on Freedom of Expression, and the African Commission on Human and Peoples’ Rights Special Rapporteur on Freedom of Expression and Access to Information, Joint Declaration on Freedom of Expression and ‘Fake News’, Disinformation and Propaganda, U.N. Doc. FOM.GAL/3/17, Mar. 3, 2017, Section 2(a).

³⁹¹ *Id.* at Preamble.

³⁹² UN Commission on Human Rights, Report of the Special Rapporteur on the Promotion and Protection of the Right to Freedom of Opinion and Expression, U.N. Doc. E/CN.4/2000/63, Jan. 18, 2000, para. 205.

³⁹³ Constitutional Court Judgment [translation], Case No. 78/PUU-XXI/2023, para. 3.8.2.

³⁹⁴ *Id.* at para. 3.18.2.

dependent on the judgement of legal subjects who have different backgrounds [and] religious, cultural and social values.”³⁹⁵

The Court held that standards that only allow conveying information that is considered “true” and not exaggerated can “lead to restrictions on the right of everyone to be creative in thinking in order to find the truth itself.”³⁹⁶ The Court further held that Articles 14 and 15 create legal uncertainty and can lead to widespread criminal sanctions given how information spreads on the internet.³⁹⁷

Both Article 14 and 15 require the speech to cause, or have the likelihood to cause, “disruption.” With respect to this element, the Constitutional Court held “there is a lack of clarity regarding the scale or parameter that constitutes the limit of danger”³⁹⁸ and that “what can or may happen is a subjective judgement that has the potential to create arbitrariness.”³⁹⁹

The perils of vagueness and arbitrariness were borne out in the cases in our dataset. Fifteen of the 73 cases filed under Article 27(3) and Article 28(2) also included charges under Article 14 and/or Article 15 of Law No. 1/1946. As mentioned above, three of these defendants were ultimately convicted under the Hoax Provisions rather than the EIT Law. In one such case, Edy Mulyadi, a journalist and politician, was charged with Article 28(2) of the EIT Law, Article 14 and Article 15 of Law No. 1/1946 and Article 156 of the Criminal Code for a YouTube video in which he criticized the proposal to shift the capital of Indonesia from Jakarta to East Kalimantan.⁴⁰⁰ He called the area of the new capital city a “place where the genie dumps children,” which allegedly humiliated the people of Kalimantan. In the video, Edy conveyed criticism that the land was not strategic and unsuitable for investment.⁴⁰¹ He was arrested and detained for over seven months and ultimately convicted under Article 15 and sentenced to 7 months imprisonment.⁴⁰²

³⁹⁵ *Id.*

³⁹⁶ *Id.*

³⁹⁷ *Id.* at para. 3.18.4.

³⁹⁸ *Id.* at para 3.18.5.

³⁹⁹ *Id.*

⁴⁰⁰ Central Jakarta District Court, Case No. 293/Pid.Sus/2022/PN, pgs. 6–7.

⁴⁰¹ *Id.*

⁴⁰² Although the court examined the charge against Edy under Article 28(2), he was ultimately not convicted under this article, as it was an alternative charge. The court instead found him guilty of the primary charge under Article 15 of Law No. 1 of 1946 on Criminal Law.

Edy testified that his remarks were part of his journalistic work and were not meant to insult any group or region.⁴⁰³ He argued that the phrase was a metaphor meant “merely to describe a place that was far away, remote, and had very limited infrastructure.”⁴⁰⁴ In finding Edy guilty under Article 15, the court reasoned that the news conveyed by the defendant about the proposed law was “incomplete” as he did not include clarifications and other sources, which would give a more complete picture to his audience.⁴⁰⁵ The Court further held that there was no requirement that the speech cause unrest, the ‘potential’ of the speech to cause disruption was sufficient.⁴⁰⁶

In one case, the defendant was charged under Article 14(1) of Law No. 1 of 1946 for posting a series of YouTube videos in which his speech was considered offensive to religious sentiments, such as that the Prophet Muhammad was “close to the jinn.”⁴⁰⁷ The court relied on religious expert testimony, including from clerics and scholars who stated that the defendant’s lack of formal religious credentials rendered him unqualified to interpret Islamic texts.⁴⁰⁸ The judgment also reflected and responded to public outrage, citing the widespread offense and unrest his videos provoked as reinforcing the need for criminal liability.⁴⁰⁹ He was sentenced to 10 years’ imprisonment.⁴¹⁰

In another case, a former politician was convicted under Article 14 for a controversial Twitter post that said “How pitiful that your Allah turned out to be weak and had to be defended. As for mine, my Allah is extraordinary, omnipotent, HE is always my defender and my Allah does not need to be defended.”⁴¹¹ The court determined that the defendant’s speech was false by relying on the testimonies of witnesses and a religious expert who affirmed that Allah is all-powerful, leading the court to rule that the defendant’s

⁴⁰³ *Id.* at pgs. 463-466.

⁴⁰⁴ *Id.* at pg. 464.

⁴⁰⁵ *Id.* at pgs. 482-483, 485

⁴⁰⁶ *Id.* at pgs. 484.

⁴⁰⁷ Ciamis District Court, Case No. 186/Pid.Sus/2021/PN.Cms., at pgs. 12

⁴⁰⁸ *Id.* at pgs. 1240-1250, 1265-1280, 1295-1307.

⁴⁰⁹ *Id.* at pgs. 727-890, 1289-1297.

⁴¹⁰ *Id.* at pg. 1307.

⁴¹¹ Central Jakarta District Court Decision, Case No. 90/Pid.SUS/2022/PN.Jkt.Pst, pg. 2 (unofficial English translation).

statement was false.⁴¹² The court relied on public outrage against the post, including on social media.⁴¹³ This reflects patterns identified in cases under Article 28(2).

The fake news provision of the newly amended EIT Law criminalizes intentionally spreading information that one knows is “fake” and that causes public unrest/riots. Importantly, the law requires that the speech cause public unrest; the mere potential to cause unrest is not sufficient. Further, the explanation to the provision states that the disturbance to public order must be physical, not in the digital space. In April 2025, the Constitutional Court affirmed this explanation and held that using Article 28(3) against ‘unrest’ in the digital sphere would violate the Constitution.⁴¹⁴ However, there is not much guidance on how to determine whether information is “fake.” In its concluding observations, the Human Rights Committee noted that the fake news provision in the amended EIT Law was “overbroad and vague.”⁴¹⁵ Indeed, Article 28(3) has been invoked against a human rights defender for allegedly “inciting” the protests in August-September 2025.⁴¹⁶

Article 263 and 264 of the new Criminal Code largely replicate Article 14 and 15 of Law No. 1/1946, which were declared unconstitutional in 2024. Article 263(2) corresponds to Article 14(2): it criminalizes any person who broadcasts or disseminates news or notifications despite reasonably suspecting that the news or notifications are fake which can result in riots within the community. And Article 264 is similar to Article 15: it targets any person who broadcasts news that is uncertain, exaggerated, or incomplete while knowing or reasonably suspecting that such news can result in riots within the community. The main difference between the new Criminal Code and the Hoax Provisions is that the Code uses the term “riots”⁴¹⁷ instead of “disruption.” All other ambiguities in the provisions remain, thus rendering them liable to be struck down as unconstitutional when they come into effect.

⁴¹² *Id.* at pgs. 166-167 (unofficial English translation).

⁴¹³ *Id.* at pg. 168-171 (unofficial English translation).

⁴¹⁴ See also Constitutional Court Decision No. 115 PUU-XXII/2024, at 301 (unofficial English translation).

⁴¹⁵ UNHRC, Concluding Observations on the Second Periodic Report of Indonesia, U.N. Doc. CCPR/C/IDN/CO/2, May 3, 2024, para. 32.

⁴¹⁶ Tempo, Jakarta Police Accuse Lokataru's Delpedro Marhaen of Inciting Anarchic Protests, Sept. 2, 2025, *available at* <https://en.tempo.co/read/2045489/jakarta-police-accuse-lokatarus-delpedro-marhaen-of-inciting-anarchic-protests>.

⁴¹⁷ The elucidation to the new Criminal Code states that “riot” is a condition that causes violence against people or goods committed by a group of people of at least 3 (three) people.

The Overreliance of Courts on Expert Witnesses: Violations of Fair Trial Rights

As discussed in the section above, Indonesian courts rely on expert evidence to determine whether the speech in question constitutes defamation, hate speech or fake news. This reliance can lead not only to unlawful restrictions on the right to free speech, but also violate the right to a fair trial as codified in Article 14 of the ICCPR.

Both regional and international legal bodies have raised concern with the overreliance of courts on prosecution expert witnesses, particularly when such experts are treated as neutral or permitted to opine on legal conclusions. Domestic courts violate the right to a fair trial when they do not critically assess the conclusions of expert witnesses, and instead adopt their opinions as fact without question. This concern arises in cases when courts “limit[] their assessment to... reproducing the conclusions of [expert] reports.”⁴¹⁸ Such passive acceptance of expert opinions undermines the court’s duty to independently evaluate the evidence before it.

The violation is even more pronounced when expert witnesses are permitted not only to determine factual matters but also to make determinations of law. As the European Court of Human Rights has emphasized, “all legal matters must be resolved exclusively by the courts.”⁴¹⁹ When an expert’s examination extends beyond defining particular words and expressions and instead “provide[s], in essence, a legal qualification of the applicant’s actions,” this undermines a defendant’s fair trial rights.⁴²⁰

The United Nations Special Rapporteur on the promotion and protection of human rights while countering terrorism has warned that reliance on one-sided expert analysis not only distorts the evidentiary balance but can also lead to convictions based solely on expert opinion, effectively replacing judicial fact-finding.⁴²¹ The practice threatens fair trial rights and judicial impartiality.⁴²²

⁴¹⁸ ECtHR, *Dmitriyevski v. Russia*, App. No. 42168/06, Oct. 3, 2017, para. 114.

⁴¹⁹ *Id.* at 113.

⁴²⁰ *Id.*

⁴²¹ Human Rights Council, Report of the Special Rapporteur on the Promotion and Protection of Human Rights and Fundamental Freedoms While Countering Terrorism, U.N. Doc. A/HRC/43/46/Add.1, Jan. 22, 2020, paras. 39, 60(d).

⁴²² *Id.*

The unquestioning reliance on expert witnesses undermines a number of fair trial rights that are enshrined in international and regional human rights instruments, namely: (i) the principle of equality of arms, (ii) the independence and impartiality of the tribunal and the presumption of innocence, and (iii) the right to examine witnesses. These rights, each explored in more detail below, are fundamental to the integrity of criminal proceedings at the domestic level.

Principle of Equality of Arms

An essential feature of the right to a fair trial is the principle of equality of arms, which requires that both the prosecution and defense have a genuine opportunity to present their case without being placed at a substantial disadvantage.⁴²³ Courts breach this right when they afford undue weight to prosecution experts or deny the defense access to independent expertise.⁴²⁴ This principle is codified in Article 14 of the ICCPR—specifically, in provisions guaranteeing the right to a fair hearing (14(1)); the right to adequate time and facilities to prepare a defense (14(3)(b)); and the right to examine witnesses under equal conditions (14(3)(e)). The UN Human Rights Committee’s General Comment No. 32 emphasizes that the principle of equality of arms prohibits procedural disadvantages that undermine a fair trial.⁴²⁵

Right to an Independent and Impartial Tribunal

Overreliance on expert opinions undermines the right to an independent and impartial tribunal, a foundational component of the right to a fair trial.⁴²⁶ When prosecution experts dominate the evidentiary record, or when courts fail to critically evaluate their findings, judicial impartiality is compromised.⁴²⁷

⁴²³ UN Human Rights Committee (HRC), General Comment No. 32, Article 14, Right to Equality Before Courts and Tribunals and to Fair Trial, U.N. Doc. CCPR/C/GC/32, Aug. 23, 2007, para. 13, *available at* <https://digitallibrary.un.org/record/606075?v=pdf> [hereinafter “General Comment No. 32”].

⁴²⁴ ECtHR, *Dombo Beheer B.V. v. The Netherlands*, App. No. 14448/88, Oct. 27, 1993; ECtHR, *Bönisch v. Austria*, App. No. 8658/79, May 6, 1985; ECtHR, *Stoimenov v. The Former Yugoslav Republic of Macedonia*, App. No. 17995/02, Apr. 5, 2007 (reiterating that the “principle of equality of arms is part of the wider concept of a fair hearing within the meaning of Article 6 § 1 of the Convention. It requires a “fair balance” between the parties: each party must be afforded a reasonable opportunity to present their case under conditions that do not place them at a disadvantage *vis-à-vis* their opponent or opponents.”).

⁴²⁵ General Comment No. 32.

⁴²⁶ *Id.* at paras. 19, 21.

⁴²⁷ UNHRC, *Khostikoev v. Tajikistan*, U.N. Doc. CCPR/C/97/D/1519/2006 (The Committee found a violation of Article 14(1) where court rulings hindered the preparation of an effective

General Comment No. 32 emphasizes that impartiality has both subjective and objective dimensions: judges must not harbor bias or appear to favor one party over the other, especially through reliance on unbalanced or untested expert testimony.⁴²⁸ This right is compromised in cases where both parties present expert witnesses, but the court fails to meaningfully engage with the defense's expert analysis and instead accepts the prosecution's expert testimony at face value without subjecting it to critical examination or conducting an independent assessment of its validity.⁴²⁹

Overreliance on state-aligned expert witnesses also threatens the presumption of innocence,⁴³⁰ particularly when courts allow experts to determine questions of law such as criminal liability, intent, or the interpretation of statutes.⁴³¹ Doing so risks substituting expert opinion for judicial fact-finding.⁴³²

The cases analysed for this report demonstrate a worrying pattern across Indonesian courts of passive reliance on prosecution experts, at the expense of impartiality.

The Right to Examine Witnesses

The overreliance of Indonesian courts on expert opinions also contravenes the right to examine witnesses. The defense must have a meaningful

defense, such as by “ignor[ing] [counsel’s] objections” and “refus[ing] to allow the possibility for the [defendant] to adduce relevant evidence.”); UNHRC, *Toshev v. Tajikistan*, U.N. Doc. CCPR/C/101/D/1499/2006 (The Committee concluded that the court lacked impartiality where “several of the [defense] lawyers’ requests were not given due consideration.”); Human Rights Council, Report of the Special Rapporteur on the Promotion and Protection of Human Rights and Fundamental Freedoms While Countering Terrorism, U.N. Doc. A/HRC/43/46/Add.1, Jan. 22, 2020, para. 39.

⁴²⁸ General Comment No. 32, para. 21.

⁴²⁹ ECtHR, *Dmitriyevski v. Russia*, App. No. 42168/06, Oct. 3, 2017, paras. 113–115; Human Rights Council, Report of the Special Rapporteur on the Promotion and Protection of Human Rights and Fundamental Freedoms While Countering Terrorism, U.N. Doc. A/HRC/43/46/Add.1, Jan. 22, 2020, paras. 39, 60(d).

⁴³⁰ ICCPR, Article 14(2) (“Everyone charged with a criminal offence shall have the right to be presumed innocent until proved guilty according to law.”).

⁴³¹ Human Rights Council, Report of the Special Rapporteur on the Promotion and Protection of Human Rights and Fundamental Freedoms While Countering Terrorism, U.N. Doc. A/HRC/43/46/Add.1, Jan. 22, 2020, paras. 39, 60(d); ECtHR, *Dmitriyevski v. Russia*, App. No. 42168/06, Oct. 3, 2017, paras. 113–115.

⁴³² *Id.*

opportunity to challenge expert opinions presented by the prosecution.⁴³³ This right is enshrined in Article 14(3)(e) of the ICCPR⁴³⁴ and in different regional human rights instruments,⁴³⁵ all of which affirm that defendants must be able to confront and rebut prosecution witnesses, including experts, on equal footing.

When courts treat prosecution experts as decisive, without providing the defense with a meaningful opportunity to challenge their findings, the proceedings lose their adversarial balance. Courts must ensure that expert evidence is open to scrutiny by both parties, and that alternative expertise can be introduced and equally considered where appropriate.

⁴³³ ECtHR, *Mirlashvili v. Russia*, App. No. 6293/04, Dec. 11, 2008, para. 163 (As a rule, these rights require that the defendant be given an adequate and proper opportunity to challenge and question a witness against him or her either when that witness is making a statement or at a later stage of the proceedings); ECtHR, *Lüdi v. Switzerland*, App. No. 12433/86, June 15, 1992, para. 49.

⁴³⁴ ICCPR, Article 14(3)(e) ("In the determination of any criminal charge against him, everyone shall be entitled to the following minimum guarantees, in full equality: To examine, or have examined, the witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him.").

⁴³⁵ ECHR, Article 6(3)(d) ("Everyone charged with a criminal offence has the following minimum rights: to examine or have examined witnesses against him and to obtain the attendance and examination of witnesses on his behalf under the same conditions as witnesses against him."); ACHR, Article 8(2)(f) ("During the proceedings, every person is entitled, with full equality, to the following minimum guarantees: the right of the defense to examine witnesses present in the court and to obtain the appearance, as witnesses, of experts or other persons who may throw light on the facts.").

JOURNALIST PROTECTIONS



The UN Human Rights Committee specifically asserts that penalizing media outlets, publishers, or journalists solely for criticizing the government or its political and social system cannot be considered a legitimate restriction on free speech.⁴³⁶ The Committee has also held that “journalism is a function shared by a wide range of actors, including professional full-time reporters and analysts, as well as bloggers and others who engage in forms of self-publication in print, on the internet or elsewhere.” Accordingly, the Committee has held that “[s]tate systems of registration or licensing of journalists are incompatible” with Article 19.

The Human Rights Council⁴³⁷ and United Nations General Assembly⁴³⁸ have passed specific resolutions on the safety of journalists, urging States to align their laws with their human rights obligations to ensure journalists can freely engage in their work without undue interference. They have called upon on States to amend or repeal overly vague defamation and libel laws that give officials excessive discretion and impose harsh penalties, which illegitimately censor journalists or hinder them from informing the public.⁴³⁹ They also condemn all forms of violence against journalists, including arbitrary arrests, harassment and intimidation, and call upon states to prevent violence by promoting training and raising awareness among law enforcement and judicial personnel.⁴⁴⁰

⁴³⁶ UNHRC, General Comment No. 34, U.N. Doc. CCPR/C/GC/34, Sept. 12, 2011, para. 42.

⁴³⁷ Human Rights Council Thirty-Ninth Session, Resolution Adopted by the Human Rights Council on 27 September 2018, The Safety of Journalists, U.N. Doc. A/HRC/RES/39/6, Oct. 5, 2018, para. 10; Human Rights Council Forty-Fifth Session, Resolution Adopted by the Human Rights Council on 6 October 2020, The Safety of Journalists, U.N. Doc. A/HRC/RES/45/18, Oct. 12, 2020, para. 10(h).

⁴³⁸ UN General Assembly, Resolution Adopted by the General Assembly on 18 December 2019, The Safety of Journalists and the Issue of Impunity, U.N. Doc. A/RES/74/157, Jan. 23, 2020, para.14.

⁴³⁹ Human Rights Council Thirty-Ninth Session, Resolution Adopted by the Human Rights Council on 27 September 2018, The Safety of Journalists, U.N. Doc. A/HRC/RES/39/6, Oct. 5, 2018, para. 12; Human Rights Council Forty-Fifth Session, Resolution Adopted by the Human Rights Council on 6 October 2020, The Safety of Journalists, U.N. Doc. A/HRC/RES/45/18, Oct. 12, 2020, para. 10(h); UN General Assembly, Resolution Adopted by the General Assembly on 18 December 2019, The Safety of Journalists and the Issue of Impunity, U.N. Doc. A/RES/74/157, Jan. 23, 2020, para. 14.

⁴⁴⁰ UN Human Rights Council, Resolution Adopted by the Human Rights Council on 29 September 2016, The Safety of Journalists, U.N. Doc. A/HRC/RES/33/2, Oct. 6, 2016, paras. 1 and 5, *available at* <https://undocs.org/Home/Mobile?FinalSymbol=A%2FHRC%2FRES%2F33%2F2&Language=E>